

Bradford School District Student Handbook

INTRODUCTION

This handbook was prepared to inform parents and students of the policies, regulations, traditions, and philosophies of Bradford School. It is intended that the procedures outlined herein will serve as a helpful guide to students both academically and socially. We strongly urge the use of information in this handbook as a guide for the student's responsibility to comply with the rules of the school. Any state law that is not covered in these policies must also be observed by the student. Parental concerns can be addressed by going to the source of the concern and then proceeding to the building level administrator and then on to the superintendent or until the concern is handled appropriately.

It is the Student Council's responsibility to review this handbook and make recommendations for change, if needed, each April to the Administration.

In keeping with the guidelines of Title VI, Section 601, Civil Rights Act of 1964, Section 901, Educational Amendment of 1972; and Section 504 of the Rehabilitation Act of 1973, the Bradford School District assures that no person in the school shall, on the basis of race, color, national origin, sex, or handicap be excluded from the participation in, be denied the benefits of or be subjected to discrimination under any program or activity receiving Federal financial assistance. Complaints and grievances under Title VI, Title IX, and Section 504 of the Rehabilitation Act of 1973 can be made to the local district coordinators.

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Phone: 344-2607 Phone: 344-8245

PHILOSOPHY OF BRADFORD SCHOOL

Bradford Public School is the center of local community interest and activity. It is designed to meet as adequately as possible the educational needs of all local youth. The educational program is student-centered. Our academic program, as well as all co-curricular activities, is planned and scheduled to direct learning activities so as to strengthen intellect, to build character, and to enrich personality.

We believe that it is the function of the educational process to provide all students with opportunities for obtaining knowledge, experience, and skills which will best prepare them to assume a position in the competitive adult society and will permit the students to make a positive contribution to themselves and to society. For some students, this will mean basic, general information plus the attainment of certain vocational skills and experiences.

ACCREDITATION

The Bradford Public Schools are fully accredited by the Department of Education which is the largest regional accrediting association. The Board of Directors, the superintendent, and the faculty are working cooperatively to maintain this rating and to improve the quality of the educational program.

STUDENT HANDBOOK

It shall be the policy of the Bradford School District that the most recently adopted version of the Student Handbook be incorporated by reference into the policies of this district. In the event that there is a conflict between the student handbook and a general board policy or policies, the more recently adopted language will be considered binding and controlling on the matter provided the parent(s) of the student, or the student if 18 years of age or older have acknowledged receipt of the controlling language.

Principals shall review all changes to district policies and ensure that such changes are provided to students and parents, either in the Handbook or, if changes are made after the handbook is printed, as an addendum to the handbook.

Principals and Counselors shall also review Policies – Smart Core Curriculum and Graduation Requirements and the current ADA Standards for Accreditation Rules to ensure that there are no conflicts. If a conflict exists, the Principal and or Counselor shall notify the Superintendent and Curriculum Coordinator immediately, so that corrections may

be made and notice of the requirements given to students and parents.

Permanent Records

Permanent school records, as required by the Division of Elementary and Secondary Education (DESE), shall be maintained for each student enrolled in the District until the student receives a high school diploma or its equivalent or is beyond the age of compulsory school attendance. A copy of the student's permanent record shall be provided to the receiving school district within ten (10) school days after the date a request from the receiving school district is received.

Legal References: A.C.A. § 6-18-901

A.C.A. § 6-28-107

DESE Rules Governing Student Permanent Records

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation for a student participating in either the Smart Core or Core curriculum. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the Bradford School District requires an additional 2 units to graduate for a total of 24 units. The additional required units may be taken from any electives offered by the district. There are some distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

Digital Learning Courses

The District shall offer one or more digital learning course(s) through one or more District approved provider(s) as either a primary or supplementary method of instruction. The courses may be in a blended learning, online-based, or other technology-based format.⁷ In addition to the other graduation requirements contained in this policy, students are required to take at least one (1) digital learning course for credit while in high school.

SMART CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half (1/2) unit

Mathematics: four (4) units (all students under Smart Core must take a mathematics course in grade 11 or 12 and complete Algebra II.)

- 1.) Algebra I or Algebra A & B* which may be taken in grades 7-8 or 8-9
- 2.) Geometry or Geometry A & B* which may be taken in grades 8-9 or 9-10

*A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four-unit requirement for the purpose of meeting the **graduation** requirement, but only serve as one unit each toward fulfilling the **Smart Core** requirement.

- 3.) Algebra II; and

- 4.) The fourth unit may be either:

- A math unit approved by DESE beyond Algebra II
- A computer science flex credit may be taken in the place of a fourth math credit.

Natural Science: three (3) units

- a. DESE approved biology – 1 credit;
- b. DESE approved physical science – 1 credit; and
- c. A third unit that is either:
 - o An additional science credit approved by DESE; or
 - o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics - one-half (1/2) unit
- World History - one unit
- American History - one unit
- Other social studies – one-half (1/2) Unit

Physical Education: one-half (1/2) unit

Note: While one-half (1/2) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (1/2) unit

Economics – one half (1/2) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.⁸

Fine Arts: one-half (1/2) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate. A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

A student who completes at least seventy-five (75) clock hours of documented community service in grades nine (9) through twelve (12) at any certified service agency or a part of a service-learning school program shall receive one (1) Career Focus credit.

CORE: Sixteen (16) units

English: four (4) units – 9, 10, 11, and 12

Oral Communications: one-half (1/2) unit

Mathematics: four (4) units

- Algebra or its equivalent* - 1 unit
- Geometry or its equivalent* - 1 unit
- All math units must build on the base of algebra and geometry knowledge and skills. ● (Comparable concurrent credit college courses may be substituted where applicable) ● A computer science flex credit may be taken in the place of a math credit beyond Algebra I and Geometry *A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.

Science: three (3) units

- a. DESE approved biology – 1 credit;
- b. DESE approved physical science – 1 credit; and
- c. A third unit that is either:
 - o An additional science credit approved by DESE; or
 - o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

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- World history, one (1) unit
- American History, one (1) unit
- Other social studies – one-half (1/2) unit)

Physical Education: one-half (1/2) unit

Note: While one-half (1/2) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (1/2) unit

Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.⁸

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A student who completes at least seventy-five (75) clock hours of documented community service in grades (9) through twelve (12) at any certified service agency or a part of a service-learning school program shall receive one (1) Career Focus credit.

Cross References: 4.55—STUDENT PROMOTION AND RETENTION

5.2 – PLANNING FOR EDUCATIONAL IMPROVEMENT

5.11—DIGITAL LEARNING COURSES

5.12-COMPUTER SCIENCE INTERNSHIPS AND INDEPENDENT STUDIES

5.16-COMPUTER SCIENCE COURSE PREREQUISITES AND PROGRESSION

Legal References: Standards of Accreditation 1-C.2,1-C.2.1, 1-C.2.2, 1-C.2.3

DESE Guidelines for the Development of Smart Core Curriculum Policy

DESE Rules Governing Distance and Digital Learning

Smart Core Information Sheet

Smart Core Waiver Form

Commissioner's Memo LS-18-082

A.C.A. § 6-4-302

A.C.A. § 6-16-122

A.C.A. § 6-16-143

A.C.A. § 6-16-149
A.C.A. § 6-16-150
A.C.A. § 6-16-1406
A.C.A. § 6-18-107

SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS FOR THE CLASS OF 2026

All students are required to participate in the Smart Core curriculum unless their parents or guardians, or the students if they are eighteen (18) years of age or older, sign a *Smart Core Waiver Form* to not participate. While Smart Core is the default option, a *Smart Core Information Sheet* and a *Smart Core Waiver Form*¹ will be sent home with students prior to their enrolling in seventh (7th) grade, or when a seventh (7th) through twelfth (12th) grade student enrolls in the district for the first time and there is not a signed waiver form in the student's permanent record. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. Those students not participating in the Smart Core curriculum will be required to fulfill the Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians prior to the deadline for them to sign and return the waiver form.

While there are similarities between the two curriculums, following the Core curriculum may not qualify students for some scholarships and admission to certain colleges could be jeopardized. Students initially choosing the Core curriculum may subsequently change to the Smart Core curriculum **providing** they would be able to complete the required course of study by the end of their senior year.² Students wishing to change their choice of curriculums must consult with their counselor to determine the feasibility of changing paths.

This policy, the Smart Core curriculum, and the courses necessary for graduation shall be reviewed by staff, students, and parents as part of the annual school district support plan development process³ to determine if changes need to be made to better serve the needs of the district's students. The superintendent, or his/her designee, shall select the composition of the review panel.

Sufficient information relating to Smart Core and the district's graduation requirements shall be communicated to parents and students to ensure their informed understanding of each: this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counselor and may be accomplished through any or all of the additional following means:⁴

- Inclusion in the student handbook of the Smart Core curriculum and graduation requirements; ● Discussion of the Smart Core curriculum and graduation requirements at the school's annual public meeting, PTA meetings, or a meeting held specifically for the purpose of informing the public on this matter; and/or
- Distribution of a newsletter(s) to parents or guardians of the district's students.

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.⁵

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation for a student participating in either the Smart Core or Core curriculum. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional __ units to graduate for a total of __ units. The additional required units may be taken from any electives offered by the district.⁶ There are some distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements. Career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

Personal and Family Finance

All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

Computer Science

All students shall earn one (1) unit of credit in a computer science or computer science related career and technical education course in order to graduate.

SMART CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half ($\frac{1}{2}$) unit

Mathematics: four (4) units (all students under Smart Core must take a mathematics course in grade 11 or 12 and complete Algebra II.)

1) Algebra I or Algebra A & B* which may be taken in grades 7-8 or 8-9;

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- Other social studies – one-half ($\frac{1}{2}$) Unit

Physical Education: one-half ($\frac{1}{2}$) unit

Note: While one-half ($\frac{1}{2}$) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half ($\frac{1}{2}$) unit

Economics – one half ($\frac{1}{2}$) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.⁸⁷

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A.C.A. § 6-4-302

A.C.A. § 6-15-2906

A.C.A. § 6-15-2911

A.C.A. § 6-16-122

A.C.A. § 6-16-143

A.C.A. § 6-16-149

A.C.A. § 6-16-150

A.C.A. § 6-16-152

A.C.A. § 6-28-115

Date Adopted:06/05/2023

4.45.2—SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS FOR THE CLASS OF 2027 AND THEREAFTER

All students are required to participate in the Smart Core curriculum unless their parents or guardians, or the

students if they are eighteen (18) years of age or older, sign a *Smart Core Waiver Form* to not participate. While Smart Core is the default option, a *Smart Core Information Sheet* and a *Smart Core Waiver Form*¹ will be sent home with students prior to their enrolling in seventh (7th) grade, or when a seventh (7th) through twelfth (12th) grade student enrolls in the district for the first time and there is not a signed waiver form in the student's permanent record. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. Those students not participating in the Smart Core curriculum will be required to fulfill the Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians prior to the deadline for them to sign and return the waiver form.

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Sufficient information relating to Smart Core and the district's graduation requirements shall be communicated to parents and students to ensure their informed understanding of each; this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counselor and may be accomplished through any or all of the additional following means:⁴

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distinctions made between Smart Core units and Graduation units. Not all units earned toward graduation necessarily apply to Smart Core requirements. Career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

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Personal and Family Finance

All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

Computer Science

All students shall earn one (1) unit of credit in a computer science or computer science related career and technical education course in order to graduate.

Community Service

Each student must receive seventy-five (75) clock hours of community service that is certified by the service agency or organization where the student volunteers.

The community service must be in programs or activities, either in Arkansas or outside of Arkansas, that meet the requirements established by the State Board and the District Board of Directors and include preparation, action, and reflection components. Except as provided by this policy, a student must receive at least the following documented clock hours of community service each year:

- Fifteen (15) hours for students in grade nine (9);
- Twenty (20) hours for students in grade ten (10);
- Twenty (20) hours for students in grade eleven (11); and
- Twenty (20) hours for students in grade twelve (12).

Students transferring into the District after grade nine (9) or students who are graduating early may receive a diploma provided that the minimum requirement for each year the student attends the District is met. The District Board of Directors may grant a waiver of the community service requirement for extenuating circumstances on a case-by-case basis, which may include without limitation:

- A major illness associated with a student or a family member of a student;
- Student homelessness or housing insecurity; and
- Notice to the public school district board of directors if the student is a major contributor to family income.

SMART CORE: Sixteen (16) units

English: four (4) units – 9th, 10th, 11th, and 12th

Oral Communications: one-half (½) unit

Mathematics: four (4) units (all students under Smart Core must take a mathematics course in grade 11 or 12 and complete Algebra II.)

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* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four-unit requirement for the purpose of meeting the **graduation** requirement, but only serve as one unit each toward fulfilling the **Smart Core** requirement.

3) Algebra II; and

4) The fourth unit may be either:

- A math unit approved by DESE beyond Algebra II; or
- A computer science flex credit may be taken in the place of a fourth math credit. Natural

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b. DESE approved physical science – 1 credit; and

c. A third unit that is either:

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Social Studies: three (3) units

· Civics - one-half ($\frac{1}{2}$) unit

· World History - one unit

· American History - one unit

· Other social studies – one-half ($\frac{1}{2}$) Unit

Physical Education: one-half ($\frac{1}{2}$) unit

Note: While one-half ($\frac{1}{2}$) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half ($\frac{1}{2}$) unit

Economics – one half ($\frac{1}{2}$) unit – dependent upon the licensure of the teacher teaching the course, this can count

toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.⁷

Fine Arts: one-half ($\frac{1}{2}$) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

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- (Comparable concurrent credit college courses may be substituted where applicable) • A computer science flex credit may be taken in the place of a math credit beyond Algebra I and Geometry

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.

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- World history, one (1) unit
- American History, one (1) unit

· Other social studies – one-half (½) unit
Physical Education: one-half (½) unit

Note: While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

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CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

Cross References: 4.55—STUDENT PROMOTION AND RETENTION

5.2—PLANNING FOR EDUCATIONAL IMPROVEMENT

5.12—COMPUTER SCIENCE INTERNSHIPS AND INDEPENDENT STUDIES

5.16—COMPUTER SCIENCE COURSE PREREQUISITES AND PROGRESSION

Legal References: Standards for Accreditation 1-C.2, 1-C.2.1, 1-C.2.2, 1-C.2.3

DESE Guidelines for the Development of Smart Core Curriculum Policy

DESE Rules Governing Distance and Digital Learning

Smart Core Information Sheet

Smart Core Waiver Form

Commissioner's Memo LS-18-082

A.C.A. § 6-4-302

A.C.A. § 6-15-2906

A.C.A. § 2911

A.C.A. § 6-16-122

A.C.A. § 6-16-143

A.C.A. § 6-16-149

A.C.A. § 6-16-150

A.C.A. § 6-16-152

A.C.A. § 6-16-1901 et seq.

A.C.A. § 6-28-115

Date Adopted: 06/05/2023

EARLY COMPLETION

Consistent with Act 275 of 1997, a Bradford High School student who completes all diploma requirements shall be awarded a diploma regardless of grade level status. To complete graduation requirements early, the following procedures must be followed:

1. Students must be a resident of the District for at least one (1) year before applying for Early Completion.
2. Student and parent/guardians will schedule a conference with counselor to review credits and file a formal "Request for Early Completion".
3. Student will have completed a minimum of 15 credits prior to application.
4. Students and parent/guardian will schedule a conference with the high school principal for consideration.
5. Student will submit 3 letters of recommendation for this opportunity.
6. Student will meet with the Early Completion Committee for consideration.
7. Student and parent/guardian will schedule a conference with the superintendent for consideration.
8. Student and parent/guardian will schedule a conference with the school board of consideration.
9. Students cannot have been absent from school more than allowed number of days according to Bradford School District handbook policy. This includes entire high school career. Allowances can be made for extreme cases such as emergencies. Allowances are allowed at the discretion of the high school principal, superintendent, and school board.
10. Students shall not have any major discipline problems on record with the school.
11. Students will have taken all standardized tests administered during the student's high school career, and consideration will be given to those who have scored a three or four on the ATLAS when given.
12. Early Completers may attend prom if their grade status guidelines is that equivalent of a junior or of a senior.

Early Completers are eligible to participate in graduation ceremonies if they have met all required criteria prior to the close of the school year. Early completers eligible to walk in graduation are required to continue school attendance per his/her grade status guidelines.

SENIOR EARLY RELEASE

Seniors at Bradford High School in good standing and completing all necessary requirements may be dismissed

from School at 1:30 if they are taking a 3 hour class from an approved institution of higher learning. Students may be dismissed at 12:05 if taking two 3 hour classes from approved institutions of higher learning.

To qualify students must:

- Get approval from high school principal
- Have a minimum of 18 high school credits
- Have a score of 19 or higher on the A.C.T. test of equivalent Compass Test (if allowed by college or university)
- Be enrolled in an approved institute of higher in learning
- Agree to abide all rules and regulations of institute of higher learning
- Pay all fees associated with institute of higher learning
- Have parental permission, if under age 18
- Have personal transportation to institute of higher learning. Students under age 18 must have signed permission form of travel

JAG PROGRAM

The JAG program is designed to benefit senior students at Bradford High School. It will allow students to participate in a JAG class, which teaches job skills, communication skills and workplace readiness items. The students can also leave campus at 12:21 to help with their employment hours. The students can receive credit for the class. The credit can count as an elective.

To be eligible:

A student must have approval by principal and counselor to participate.

Student must have enough credits to be eligible to graduate.

Student must have good, past attendance and behavior records.

Students under 17 must have signed parental approval.

Students will have to provide all transportation.

Students are responsible for all health insurance items.

Students must obey all Federal and State laws and regulations.

Students must obey all rules and regulations of their employers.

Students must be employed, when they start the program.

If students lose their employment, they must find other employment within two weeks to continue in the program. If

a student loses their employment more than once, they can be removed from the program by the program supervisor.

Employers must abide by all Federal and State laws. Employer must provide all information needed by the program.

Employer is responsible for all wage and taxation items.

Employers must be approved before the student is eligible for the program.

Students will file an application for the program by June 1 of the preceding year. The applications will be reviewed by the selection committee.

ALTERNATIVE LEARNING ENVIRONMENT

The District shall provide an eligible alternative learning environment (ALE) for each eligible ALE student enrolled in a District school. The ALE shall be part of an intervention program designed to provide guidance, counseling, and academic support to students who are experiencing emotional, social, or academic problems. Placement of a student in an ALE shall not be punitive in nature.

The superintendent or designee shall appoint an Alternative Education Placement Team which shall have the responsibility of determining student placement in the ALE. A student may be enrolled in an ALE only on the referral of the Alternative Education Placement Team. The team's placement decision is final and may not be appealed.¹

The team is to be comprised of the following:

- a school counselor from the referring school;
- the ALE administrator and/or ALE teacher;
- the building principal or assistant principal from the referring school;
- a parent or legal guardian (if they choose to participate);
 - o The District shall document its efforts to contact the student's parent or guardian to schedule a meeting or a phone call for a placement meeting at the parent or guardian's convenience, and maintain such documentation in the student's Student Action Plan (SAP).
- LEA special education/504 representative (if applicable);
- at least one (1) of the student's regular classroom teacher(s); and
- if the District so chooses, the student.

Students who are placed in the ALE shall exhibit at least two of the following characteristics a through

- I: a) behavior;
- b) Disruptive Dropping out from school;
- c) Personal or family problems or situations;
- d) Recurring absenteeism;

For the purposes of the ALE, personal or family problems or situations are conditions that negatively affect the student's academic and social progress. These may include, but are not limited to:

- e) Ongoing, persistent lack of attaining proficiency levels in literacy and mathematics
- f) Abuse: physical, mental, or sexual;
- g) Frequent relocation of residency;
- h) Homelessness;
- i) Inadequate emotional support;
- j) Mental/physical health problems;
- k) Pregnancy; or
- l) Single parenting.

No later than five (5) school days after a student begins alternative education interventions, the Alternative Education Placement Team shall develop a signed agreement between the ALE, the parent or legal guardian (if they choose to participate), and the student, outlining the responsibility of the ALE, parent or legal guardian, and the student to provide assurance that the plan for each student is successful.

No later than one (1) week after a student begins alternative education interventions, the Alternative Education Placement Team shall assess the student's current functioning abilities and all relevant social, emotional, academic, career, and behavioral information and develop an SAP outlining the intervention services to be provided to the student that is in compliance with the Arkansas Department of Education (ADE) Rules. The SAP may be revised from time to time by the ALE placement team and a positive behavior or transitional plan shall be developed and added to the SAP prior to a student's return to the regular educational environment.

The district's ALE program shall follow class size, staffing, curriculum, and expenditure requirements identified in the ADE Rules.

Legal References: A.C.A. § 6-20-2305(b)(2)

A.C.A. § 6-48-101 et seq.

ADE Rules Governing Student Special Needs Funding – 3.01, 4.00, and 8.0

Alternative Learning Program Agreement is on page _____.

**HIGH SCHOOL CORRESPONDENCE, VIRTUAL SCHOOL
AND SUMMER SCHOOL
(other than at Bradford School)**

No more than one unit of credit will be accepted toward graduation. This unit will only be accepted if the student has once failed the subject in residence. Exceptions due to extended illness or extenuating circumstances must be received by the Principal.

All correspondence, virtual school or summer courses must be approved in advance by the Administration.

STUDENT PERFORMANCE

Special reports, if necessary, will be sent home at 4 1/2 weeks. Report Cards are given out as soon as possible following the nine-week tests. It shall be the policy of the Board to require all teachers to communicate personally with the parent(s) or guardian(s) of each student during the school year to discuss the student's academic progress. Should any student not perform at the level expected for the grade, the teacher will communicate with the parent(s) or guardian(s) a minimum of once each month until satisfactory progress is made. Elementary teachers will meet with the parent(s) or guardian(s) of each student at least once each semester through a parent-teacher conference, a telephone conference or a home visit.

All grade level conferences with parent(s) or guardian(s) shall be scheduled at a time and place to best accommodate those participating in the conference. The school shall document participation or non-participation in required conferences. If a student is to be retained at any grade level, notice of retention and the reasons for retention shall be communicated promptly in a personal conference.

STUDENT PROMOTION AND RETENTION

A disservice is done to students through social promotion and is prohibited by state law. The District shall, at a minimum, evaluate each student annually in an effort to help each student who is not performing at grade level. Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall be kept informed concerning the progress of their student(s). Notice of a student's possible retention or required retaking of a course shall be included with the student's grades sent home to each parent/guardian or the student if 18 or older. Parent-teacher conferences are encouraged and may be held as necessary in an effort to improve a student's academic success.

Each time a student is assessed by use of a high-quality literacy screener, with results at least once each semester, the Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis, and teacher(s) of a student in kindergarten through eighth (8th) grade shall be notified in writing of the student's independent grade-level-equivalency in reading and, in a parent friendly manner, the student's reading progress.

Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public education entities.

Promotion or retention of students, or their required retaking of a course shall be primarily based on the following criteria.

. The criteria must include the following for students in kindergarten through grade four (k-4):

- A student who has not met the third-grade reading standard as defined by the state board shall not be promoted to fourth(4th) grade unless the student has a good cause waiver. The following students may receive a good cause waiver:
- Limited English Proficiency students who have had less than three (3) years of instruction in an English language learner program;
- Students with a disability who are not eligible for the alternate assessment and who have an individualized education program or a 504 plan that reflects that the individual student:

- Has received an intensive, evidence-based literacy intervention program aligned to the science of reading for more than two (2) years; and

- Still demonstrates a need in reading proficiency or previously was retained in kindergarten, grade one (1), grade two (2), or grade three (3);

- Students who:

- Have received an intensive, evidence-based literacy intervention program aligned to the science of reading for two (2) or more years;

- Still demonstrate a need in reading proficiency and who previously were retained in kindergarten, grade one (1), grade two (2), or grade three (3);

- Have received a special education referral and a full comprehensive evaluation; and ○

Have not met exceptional education criteria;

- Students who have already been retained in kindergarten, grade one (1), grade two (2), or grade three (3) for one (1) year;

- Students who can demonstrate that they are successful and independent readers and can perform at or above grade level by use of subsequent student assessments or alternative assessments; or ● Other students with necessary, justifiable good-cause exemptions identified as appropriate by the state board, in consultation with reading experts.

If there is doubt concerning the promotion or retention of a student or his/her required retaking of a course, a conference shall be held before a final decision is made that includes the following individuals: a. The building principal or designee;

b. The student's teacher(s); s

c. School counselor;

d. a 504/Special Education representative (if applicable); and

e. the student's parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis.

The conference shall be held at a time and place that best accommodates those participating in the conference. The school shall document participation or non-participation in required conferences. If the conference attendees fail to agree concerning the student's placement or receipt of course credit, the final decision shall rest with the principal or the principal's designee.

Each student² shall have a student success plan (SSP) developed by school personnel in collaboration with the student's parents and the student that is reviewed and updated annually. A student's SSP shall use multiple academic measures to personalize learning in order for students to achieve their grade-level expectations and individual growth. The SSP will identify if the student is in need of additional support or acceleration. Academic measures to be used in creating and updating a student's SSP shall include, but are not limited to:

- Statewide student assessment results;

- Subject grades;

- Student work samples; and

- Local assessment scores.

The SSP for a student in kindergarten through grade three (K-3) who does not meet the reading standard As set by the state board and determined by a high-quality literacy screener or the statewide assessment shall include an individual reading plan for each student. An individual reading plan shall include:

1. The student's specific, diagnosed reading skill needs, including without limitation:
 - Phonemic awareness;
 - Phonics decoding;
 - Text reading fluency;
 - Vocabulary-building strategies; and
 - Self-regulated use of reading comprehension strategies, as identified by high-quality literacy screener data;
2. The goals and benchmarks for the student's growth;
3. How the student's progress will be monitored and evaluated;
4. The type of additional instructional services and interventions the student may receive;
5. The intensive, evidence-based literacy intervention program aligned to the science of reading the student's teacher will use to address the areas of phonemic awareness, phonics, fluency, vocabulary, and comprehension;
6. The strategies the student's parents, legal guardians, or persons standing in loco parentis to the student are encouraged to use in assisting the student to achieve the student's reading goal; and
7. Any additional services the student's teacher determines are available and appropriate to accelerate the student's reading skill development.

All parents, legal guardians, or persons standing in loco parentis shall be notified in writing:

- a. Of the content of their child's independent reading plan and progress on the independent reading plan throughout the year; and
- b. By no later than October 1 of each year, or as soon as practicable if a student's reading need is identified after October 1:
 - Of their student's eligibility to participate in the literacy tutoring grant program;
 - The process for applying for the literacy tutoring grant program; and
 - Other information provided by DESE.

For each student who does not meet the reading standard established by the state board by the end of third (3rd) grade, including students who are promoted to the fourth (4th) grade under a good cause waiver, the District, during the subsequent summer and school year, shall :

- a. Provide at least ninety (90) minutes of evidence-based literacy instruction aligned to the science of reading during each school day;
- b. Assign the student to:
 - If the District has a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years, a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years; or ●
 - If the District is unable to identify a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years, a

teacher:

- With a highly-effective rating according to the Teacher Excellence and Support System, when possible; or
 - Deemed to be a high-performing teacher as defined by a Master Professional Educator designation.
- c. Provide parents, legal guardians, or persons standing in loco parentis to students with a “read-at-home” plan to support student early literacy growth, which shall include evidence-based science of reading strategies and tools that are aligned to a student’s individual reading plan for parents, legal guardians, or persons standing in loco parentis to use with their student;
- d. Notify parents, legal guardians, or persons standing in loco parentis to a student regarding their student’s eligibility for a literacy tutoring grant;
- e. Be given priority to receive a literacy tutoring grant; and
- f. Be given the option to participate in additional intensive, evidence-based literacy intervention programs aligned to the science of reading.

The SSP of a student in kindergarten through grade eight (K-8) who is not performing at or above grade level on the state assessment, as defined by the State Board of Education shall include a math intervention plan. The math intervention plan may include the:

1. Provision of each student with access to high-dosage, targeted math tutoring in the subsequent school year, which shall include three (3) or more tutoring sessions a week in a one-on-one or small-group setting;
2. Assignment to:
 - if the District has a teacher with a value-added model score in the top quartile statewide in math for the previous three (3) years, a teacher, with a value-added model score in the top quartile statewide in math for the previous three (3) years; or
 - if the District is unable to find a teacher with a value-added model score in the top quartile statewide in math for the previous three (3) years, a teacher:
 - With a highly-effective rating in the Teacher Excellence and Support System, when possible; or
 - Deemed to be a high-performing teacher as defined by a Master Professional Educator designation; and
3. Provision of each student with extended time on math instruction during or after school.

All parents, legal guardians, or persons standing in loco parentis shall receive written notification of their student's math intervention plan and progress on the student’s math intervention plan throughout the school year.

By the end of grade eight (8), the student’s SSP shall:³

- Guide the student along pathways to graduation;
- Address accelerated learning opportunities;
- Address academic deficits and interventions; and
- Include college and career planning components.

Based on a student’s score on the college and career assessment:

- The student's SSP will be updated in order to assist the student with college and career readiness skills, course selection in high school, and improved academic achievement; and
- Provide a basis for counseling concerning postsecondary preparatory programs.

A student's SSP shall include the recommended sequence of courses for successful completion of the diploma pathway selected by the student but be sufficiently flexible to allow the student to change the student's selected diploma pathway. The school counselor shall meet with the student's parent, legal guardian, or persons standing in loco parentis and the student to review the student's SSP annually and to revise the student's SSP as necessary to identify the courses to be taken each year until all required core courses are completed. Part of the review shall include an explanation of the possible impacts the revisions to the plan might have on the student's graduation requirements and postsecondary education goals. Any change made to a student's SSP as part of the review that amends the student's diploma pathway shall be structured to ensure that the student will meet the high school graduation requirements for the student's chosen diploma pathway and be qualified for admission to a postsecondary educational institution or to enter the workforce. After each review, the student's SSP shall be signed by the student; student's parent, legal guardian, or person standing in loco parentis to the student; and the school counselor.

An SSP shall be created:

1. By no later than the end of the school year for a student in grade eight (8) or below² who enrolls in the District during the school year; or
2. As soon as reasonably possible for a student in grade nine (9) or above who enrolls in the District at the beginning or during the school year.

Regardless of the student having earned passing grades, a student who falls under one of the following categories shall be considered for retention or shall not receive credit for the course associated with the assessment. The student:

- does not take the State mandated assessment for the student's grade level or course within the time frame specified by the State;
- takes the State mandated assessment but does not put forth a good faith effort on the assessment as determined by the assessment administrator/proctor.

The Superintendent or designee may wave this provision when the student's failure was due to exceptional or extraordinary circumstances.³

Promotion/retention of students with an IEP shall be based on their successful attainment of the goals set forth in their IEP.

In addition to the possibility of retention or withholding of course credit, students who either refuse to sit for a State assessment or attempt to boycott a State assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are originally administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity, including school dances, prom, homecoming, senior events, and may be prevented from walking or participating in graduation exercises. The student shall remain ineligible to participate until the student takes the same or a following State mandated assessment, as applicable, or completes the required remediation for the assessment the student failed to put forth a good faith effort on. The Superintendent or designee may wave this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances. Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.

Cross References: 3.30—PARENT-TEACHER COMMUNICATION

4.56—EXTRACURRICULAR ACTIVITIES - SECONDARY SCHOOLS

4.56.1—EXTRACURRICULAR ACTIVITIES - ELEMENTARY

5.13-STUDENT INTERVENTION SERVICES AND SUMMER SCHOOL

Legal References: A.C.A. § 6-15-2001

A.C.A. § 6-15-2005

A.C.A. § 6-15-2006

A.C.A. § 6-15-2907

A.C.A. § 6-15-2911

A.C.A. § 6-17-429

A.C.A. § 6-17-431

A.C.A. § 9-28-205

DESE Rules Governing the Arkansas Educational Support and Accountability Act

Murphy v. State of Ark., 852 F.2d 1039 (8th Cir. 1988)

DESE Rules Governing Grading and Course Credit

STUDENT ACCOUNTABILITY AND PERFORMANCE REPORTING

Teachers will communicate personally with the parent(s) or guardian(s) of each student during the school year to discuss the student's academic progress and requiring more frequent communication with the parent(s) or guardian(s) of students not performing at the level expect for their grade.

Teachers of students in grades K-12 shall meet with the parent(s) or guardian(s) of each student at least once a semester through a parent-teacher conference, telephone conferences, or a home visit.

All grade level conferences with parent(s) and or guardian(s) shall be scheduled at a time and place to best accommodate those participating in the conference. The school shall document participation or nonparticipation in required conferences. If a student is to be retained at any grade level, notice of retention and the reasons for retention shall be communicated promptly in a personal conference.

GRADING SYSTEM

Parents or guardians shall be kept informed concerning the progress of their student. Parent-teacher conferences are encouraged and may be requested by parents, guardians, or teachers. If the progress of student is unsatisfactory in a subject, the teacher shall attempt to schedule a parent-teacher conference. In the conference, the teacher shall explain the reasons for difficulties and shall develop, cooperatively with the parents, a plan for remediation which may enhance the probability of the student succeeding. The school shall also send timely progress reports and issue grades for each nine-(9) week grading period to keep parents/guardians informed of their student's progress.

The evaluation of each student's performance on a regular basis serves to give the parents/guardians, students, and the school necessary information to help effect academic improvement. Student's grades shall reflect only the extent to which a student has achieved the expressed educational objectives of the course.

If a student is to be retained at any grade level or denied course credit, notice of, and the reasons for retention shall be communicated promptly in a personal conference.

Performance in Kindergarten will be reflected in a Standards Based Report Card.

The grades of a child in foster care shall not be lowered due to an absence from school due to:

1. A change in the child's school enrollment;
2. The child's attendance at a dependency-neglect court proceeding; or
3. The child's attendance at court-ordered counseling or treatment.

If a student is to be retained at any grade level or denied course credit, notice of, and the reasons for retention shall be communicated promptly in a personal conference.

The grading scale for all school in the district shall be as follows:

A= 100-90

B= 89-80

C= 79-70

D= 69-60

F= 59 and below

For the purpose of determining grade point averages, the numeric value of each letter grade shall be;

A= 4 points

B= 3 points

C= 2 points

D= 1 point

F= 0 points

The grade point values for Advanced Placement (AP), International Baccalaureate (IB), concurrent credit courses and approved honor courses shall be one (1) point greater than for regular courses with the exception that an F shall still be worth zero (0) points.

Percentages Grade Point Courses	Regular	Weighted
90-100 A	4.0	5.0
80-89 B	3.0	4.0
70-79 C	2.0	3.0
60-69 D	1.0	2.0
59 and below F	0.0	0.0

Legal References: A.C.A. 6-15-902

A.C.A. 9-28-113(f)

State Board of Education: Standards for Accreditation 12.02

Arkansas Department of Education Rules and Regulations Governing
Grading and Course Credit

Special Education Notation

No notation of the special education status of a student is recommended or required when that student is mainstreamed into a regular education class.

Student transcripts that indicate enrollment in Special Education classes outside of the regular classroom are to be asterisked with the following footnote: "Placement in this class was based on the student's individualized education plan."

HIGH SCHOOL HONOR STUDENT REQUIREMENTS

Beginning in the 2010-11 school year students must take or have taken at least two Honors or AP classes during

their 10th or 11th grade year and one AP course during their senior year to be considered for honor graduate status.

Beginning with the class of 2029, students must take or have taken at least two Honors, AP or Concurrent courses during their 10th or 11th grade year and at least one AP and at least one Concurrent course during their senior year to be considered for honor graduate status.

A. There will be three levels of high school honor graduates based on a 4.0 GPA:

Highest Honor - will be students with a 3.9 - 4.0

High Honor - will be students with a 3.7 - 3.89

Honors - students with a 3.4 - 3.69

B. Must have 24 units of credit meeting graduation requirements.

C. Valedictorian and Salutatorian will be chosen from our honor students. Valedictorian and Salutatorian will be chosen based on the five point weighted GPA.

D. Only a student who is enrolled in a course of study containing the minimum core of high school courses recommended for preparation for post-secondary education as set forth by the State Board of Higher Education and State Board of Education pursuant to Arkansas Code 6-61-217 or shall be eligible for membership in the National Honor Society or any equivalent honorary society.

E. The following will be required to qualify for valedictorian, salutatorian, or honor graduate:

English 4 units

Not including courses in oral communication, journalism, drama or debate.

Natural Science 3 units

With laboratories, chosen from Physical Science, Biology, Chemistry, or Physics. (Only 1 unit may come from life science.)

Oral Communication 1/2 unit

Mathematics 4 units

Including Algebra I and II, Geometry and a course above Algebra II. It is strongly recommended that students take a math course during their senior year.

Social Studies 3 units

Including 1 of American History, (does not include Contemporary American History), 1 of World History (not to include World Cultures, World Geography, or Global Studies), and at least 1/2 unit of Civics or American Government. (not to include courses in practical arts).

Physical Education 1/2 unit

Health and Safety 1/2 unit

Fine Arts 1/2 unit

ACCELERATED HIGH SCHOOL STUDENT ADMISSION

High school students who meet the prescribed criteria adopted by the Arkansas State Board of Higher Education (SBHE) may enroll in university courses while in high school. They must be recommended by their high school principals or superintendents. Furthermore, combined concurrent enrollments in both high school and college may not exceed normal academic loads.

Concurrent Credit

Any student who is enrolled in grades 9-12 at Bradford High school shall be eligible to enroll in a publicly supported community college, technical college or four-year college or university in accordance with the rules and regulations by the college or university.

Any student in grades 9-12 who enrolls in and successfully completes a course(s) offered by a college, technical college or university will receive high school and college grades and credit toward graduation. Credit earned during summer terms are included. Three semester hours of college credit taken by a student in grades 9-12 at a publicly

supported community college, technical college or four-year college or university shall be equivalent to one unit high school credit. Concurrent courses will be awarded the same quality points as regular level courses at Bradford High School. Credit will be awarded as electives, unless prior approval is granted by school officials.

Students must comply with applicable requirements of Bradford High School.

HIGH SCHOOL SCHEDULE CHANGES

All schedule changes for students must be made and approved by the principal. If a student, with justifiable reasons, desires to drop a course, he must request permission to do so from the principal no later than one week after the class begins. The student must then present a drop slip signed by the principal to the teacher(s) whose class(es) is/are affected by this change.

HOMEWORK POLICY

Definition:

Homework is an assignment completed outside instructional time. Homework may be completed at school during study hall, at the end of a class period after instruction has been completed, and/or taken home to be completed.

Philosophy:

- a. Homework should be included as an integral part of the instructional program, and as a means by which students are provided extended time to master learning concepts and objectives.
- b. Homework should be a positive experience, providing students the opportunity to:
 1. reinforce skill development,
 2. manage learning time away from the school setting,
 3. communicate to parents learning activities provided during the school day,
 4. develop self-discipline and good study habits.

Procedures for Elementary:

- a. Homework should provide immediate feedback to the teacher on areas of weakness in the student's understanding of concepts and/or acquisition of skills.
- b. Teachers should give homework only in the amount they are willing to check, grade, or review.
- c. Homework assignments will enhance the learning process by emphasizing the application of concepts and skills introduced.
- d. Generally, homework assignments over weekends and holidays will be minimized.
- e. The amount, length, and type of homework at the elementary level may vary according to individual needs. The time spent on homework, which will vary individually depending upon the speed that each student works, should average approximately:

Kindergarten (2nd semester).....	10 minutes 4 days per week
Grade 1-6	Up to 30 minutes 4 days per week

Procedures for the Secondary Level:

- a. All teachers will give adequate homework assignments to insure that the skills learned in the classroom will be reinforced.
- b. Homework assignments will be given after instructional time.
- c. Teachers should give homework only in the amount they are willing to check, grade, or review.
- d. Homework will be averaged as a part of the nine weeks and semester grades.
- e. Each teacher will explain to his or her students what is required in completing all assignments. However, it is the student's responsibility to complete all assignments.
- f. Homework assignments should be a **combined maximum** of ten hours per week. This will be representative of the major academic disciplines, but may include other subject areas. Except for special projects, teachers should not expect students to spend more time on the subjects they teach than on assignments in other subjects.
- g. Modifications for special education students will be made on the basis of needs determined by the teachers.

STUDENT TRANSPORTATION (BUSES)

All school buses are owned and operated by the school district. The drivers have the same authority and responsibility on the bus that the teachers have in the classrooms. Pupils are under the supervision of the bus driver and are responsible to the driver for their conduct.

The buses will run as nearly on schedule as possible. Drivers have been instructed, if on schedule, not to wait for any pupils who are not at the regular 'pick up area'. Riding the bus is a privilege that may be denied temporarily or permanently to anyone whose conduct becomes unsatisfactory. This is necessary for the safety of the other students riding the bus.

Students are registered as bus riders or car riders. Any time a student makes a change a note from parents/guardians or a phone call must be made to the office. Phone calls to make these changes should be made before 2:00 p.m. in order for the student and homeroom teacher to get the message. This is also for the safety of the student. Drivers must be given the bus note change from students in grades K-12 that is approved by the principal or designee. Parents and students must follow district procedures for arrival and dismissal of car riders

STUDENTS RIDING SCHOOL BUSES

Students are subject to the same rules of conduct while traveling to and from school as they are while on school grounds. Appropriate disciplinary actions may be taken against commuting students who violate student code of conduct rules.

Students shall be instructed in safe bus riding practices. The driver of a school bus shall not operate the school bus until every passenger is seated. Disciplinary measures for problems related to bus behavior shall range from a warning to suspension from school and/or the bus and the penalty will be applied according to the severity of the offense and at the discretion of the Administrator.

Transporting students to and from school who have lost their bus transportation privileges shall become the responsibility of the student's parent or legal guardian. Students are under the supervision of the bus drivers and responsible to the driver for their conduct.

BUS RULES:

Bus drivers are to report student disrespect or misbehavior to the principal or designee. Students reported by the bus driver will be subject to disciplinary action, including removal from the bus for indefinite periods. Bus regulations are as follows:

1. Be at the 'pick up' area at the scheduled time. Stand back about ten feet from the 'pick up' area and wait until the door is opened before moving closer to the bus. Do not play on the highway or road. If you miss the bus, do not attempt to hitchhike or ride or walk to or from school.
2. If a student must cross the highway to enter the bus, wait until the bus has come to a complete stop and the driver has signaled you to cross the highway.

3. While loading or unloading, enter or leave the bus orderly and quickly.
4. While riding the bus, students are under the supervision of the driver at all times.
5. Students are expected to conduct themselves in a manner such that will not distract the attention of their driver or disturb other riders on the bus (which indicates keeping your hands to yourself; attend to your own matters; let other students alone, and be reasonably quiet).
6. No knives, sharp objects of any kind, or fire-arms are allowed. No pets or other living animals, etc. are allowed on the bus. No items made of glass or food are allowed on the bus.
7. Students will remain in assigned seats at all times.
8. Students are not to tamper with any of the safety devices, such as door latches, fire extinguishers, etc.
9. Students are not to put their hands, arms, heads, or bodies out of the window. Students do not need to yell at anyone outside the bus.
10. Students are not to deface the bus or any school property. Do not throw paper, food, or any other object on the floor of the bus. Do not eat on the bus. No smoking, dipping, or chewing while at the bus stop or while riding a school bus. Keep the aisle of the bus clear of books, lunches, coats, etc.
11. Do not ask the driver to let you off the bus at the store, to get mail out of the box, or any place except at your regular stop.
12. Students who must cross the road after leaving the bus in the afternoon must go to a point on the shoulder of the road ten feet in front of the bus. Cross the highway only after the driver has signaled you to do so.
13. Do not damage road signs or warning signals placed on the highway by the Highway Department.
14. All hard materials must be covered, properly secured, and located so as not to block the aisles or exits.
15. It is unlawful for any person or persons to threaten, curse or use abusive language to a school bus driver in the presence of students.
16. Riding home with other students is not permitted without a note from the parent or guardian, signed by the building principal, and may be rejected if excessive crowding on the bus occurs.
17. This is not intended to cover all the “do’s” and “don’ts”, but it is a very specific guide.

Penalties ranging from a warning to suspension from school and/or the bus and the penalty will be applied according to the severity of the offense and at the discretion of the Administrator.

Unacceptable Behavior:

1. Eating or drinking on bus
2. Out of seat or in aisle while bus is in motion
3. Turned around in seat
4. Horseplay, yelling out bus window, loud noise
5. Possession of unacceptable material, objects, or obscene gestures
6. Rudeness, improper language
7. Unauthorized transportation
8. Profanity, verbal abuse, and harassment (directed at students or driver)
9. Body parts out of window (head, hands, legs, etc)
10. Throwing/shooting of any object (paper, pencils, paper clips, etc.)
11. Physical aggression

12. Destruction of school property (vandalism-suspended until restitution is made)
13. Loading or unloading buses improperly or tampering with any portion of bus
14. Lighting of matches, fireworks, or any flammable object or substance
15. Riding of any bus after being suspended from one (suspension to include all activities and field trips)
16. Fighting (of any kind)
17. Other offenses as reported by driver or principal

Legal Reference: A.C.A. § 6-19-119 (b)

BUS RIDING FOR EXTRACURRICULAR ACTIVITIES

1. Any student of Bradford School making any such out of town trip must travel round trip by school arranged transportation. However, students will be allowed to ride home with parents or guardians provided they sign a check-out sheet with the coach or sponsor.
2. Any student traveling by any mode of transportation other than that described above will not be allowed to participate in the activity.
3. Any exception to the above rules must be cleared through the principal. Very few exceptions will be made.

REQUIREMENTS FOR PARTICIPATION IN ELEMENTARY EXTRACURRICULAR ACTIVITIES

Definitions

“Extracurricular activities” are defined as: any school sponsored program where students from one or more schools meet, work, perform, practice under supervision outside of regular class time, or are competing for the purpose of receiving an award, rating, recognition, or criticism, or qualification for additional competition. Examples include, but are not limited to, inter/intrascholastic athletics, cheerleading, band, choral, math, or science competitions, field trips, and club activities.

“Field Trips” are when individual students or groups of students are invited to programs or events when there is no competition and the students are not interacting with each other for the purpose of planning, qualifying, or arranging for future programs or for the purpose of receiving recognition.

“Interscholastic Activities” means athletic or non-athletic/academic activities where students compete on a school vs. school basis.

“Intrascholastic Activities” means athletic or non-athletic/academic activities where students compete with students from within the same school.

Extracurricular Eligibility

The Board believes in providing opportunities for students to participate in extracurricular activities that can help enrich the student’s educational experience. At the same time, the Board believes that a student’s participation in extracurricular activities cannot come at the expense of his/her classroom academic achievement. Interruptions of instructional time in the classroom are to be minimal and absences from class to participate in extracurricular activities shall not exceed one per week per extracurricular activity¹ (tournaments or other similar events excepted with approval of the Superintendent). All students are eligible for extracurricular activities unless specifically denied eligibility on the basis of criteria outlined in this policy.

A student may lose his/her eligibility to participate in extracurricular activities when, in the opinion of the school’s administration, the student’s participation in such an activity may adversely jeopardize his/her academic achievement. Students may also be denied permission to participate in extracurricular activities as a consequence of

disciplinary action taken by the administration for inappropriate behavior.³

Any student who refuses to sit for a Statewide assessment or attempts to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity. The student shall remain ineligible to participate until the student takes the same or a following statewide assessment, as applicable. The superintendent or designee may wave this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances.⁴ Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.⁵

A student who enrolls in the district and meets the definition of "eligible child" in Policy 4.2 – ENTRANCE REQUIREMENTS shall be eligible to try out for an extracurricular activity regardless of the date the student enrolls in the District so long as the student meets all other eligibility requirements and the extracurricular activity is still ongoing.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

Cross References: 4.55—STUDENT PROMOTION AND RETENTION

4.56—EXTRACURRICULAR ACTIVITIES – SECONDARY SCHOOLS

Legal References: State Board of Education Standards for Accreditation 10.05 and 10.06 A.C.A.

§ 6-4-302

A.C.A. § 6-15-2907

A.C.A. § 6-16-151

A.C.A. § 6-18-713

A.C.A. § 6-28-108

Commissioner's Memo LS-18-015

REQUIREMENTS FOR PARTICIPATION IN SECONDARY SCHOOLS EXTRACURRICULAR ACTIVITIES

Definitions:

"Academic Courses" are those courses for which class time is scheduled, which can be credited to meet the minimum requirements for graduation, which is taught by a teacher required to have State licensure in the course or is otherwise qualified under Arkansas statute, and has a course content guide which has been approved by the Division of Elementary and Secondary Education (DESE). Any of the courses for which concurrent high school credit is earned may be from an institution of higher education recognized by DESE. If a student passes an academic course offered on a block schedule, the course can be counted twice toward meeting the requirement for students to pass four (4) academic courses per semester as required by this policy.

"Extracurricular activities" are defined as: any school sponsored program where students from one or more schools meet, work, perform, practice under supervision outside of regular class time, or are competing for the purpose of receiving an award, rating, recognition, or criticism, or qualification for additional competition. Examples include, but are not limited to, inter/intrascholastic athletics, cheerleading, band, choral, math, or science competitions, field trips, and club activities.

“Field Trips” are when individual students or groups of students are invited to programs or events when there is no competition and the students are not interacting with each other for the purpose of planning, qualifying, or arranging for future programs or for the purpose of receiving recognition.

“Interscholastic Activities” means athletic or non-athletic/academic activities where students compete on a school vs. school basis.¹

“Intrascholastic Activities” means athletic or non-athletic/academic activities where students compete with students from within the same school.¹

“Supplemental Improvement Program (SIP)” is an additional instructional opportunity for identified students outside of their regular classroom and meets the criteria outlined in the current Arkansas Activities Association (AAA) Handbook.

Extracurricular Eligibility

The Board believes in providing opportunities for students to participate in extracurricular activities that can help enrich the student’s educational experience. At the same time, the Board believes that a student’s participation in extracurricular activities cannot come at the expense of his/her classroom academic achievement. Interruptions of instructional time in the classroom are to be minimal and absences from class to participate in extracurricular activities shall not exceed one per week per extracurricular activity (tournaments excepted)². Additionally, a student’s participation in, and the District’s operation of, extracurricular activities shall be subject to the following policy. All students are eligible for extracurricular activities unless specifically denied eligibility on the basis of criteria outlined in this policy.

Any student who refuses to sit for a Statewide assessment or attempts to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity. The student shall remain ineligible to participate until the student takes the same or a following statewide assessment, as applicable. The superintendent or designee may waive this paragraph's provisions when the student’s failure was due to exceptional or extraordinary circumstances.³ Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.⁴

A student who enrolls in the district and meets the definition of “eligible child” in Policy 4.2 – ENTRANCE REQUIREMENTS shall be eligible to tryout for an extracurricular activity regardless of the date the student enrolls in the District so long as the student meets all other eligibility requirements and the extracurricular activity is still ongoing.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

Interscholastic Activities

Each school in the District shall post on its website its schedule of interscholastic activities, including sign-up, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule

shall be available upon request.⁵

ACADEMIC REQUIREMENTS: Junior High

A student promoted from the sixth to the seventh grade automatically meets scholarship requirements. A student promoted from the seventh to the eighth grade automatically meets scholarship requirements for the first semester. The second semester eighth-grade student meets the scholarship requirements for junior high if he/she has successfully passed four (4) academic courses the previous semester.

The first semester ninth-grade student meets the scholarship requirements for junior high if he/she has successfully passed four (4) academic courses the previous semester.

The second semester ninth-grade student meets the scholarship requirements for junior high if he/she has successfully passed (4) academic courses the previous semester which count toward his/her high school graduation requirements.

Ninth-grade students must meet the requirements of the senior high scholarship rule by the end of the second semester in the ninth grade in order to be eligible to participate in the fall semester of their tenth-grade year.

ACADEMIC REQUIREMENTS: Senior High

In order to remain eligible for competitive interscholastic activity, a student must have passed (4) academic courses the previous semester and either:

- 1) Have earned a minimum Grade Point Average (GPA) of 2.0 from all academic courses the previous semester; or
- 2) If the student has passed four (4) academic courses the previous semester but does not have a 2.0 GPA the student must be enrolled and successfully participating in an SIP to maintain their competitive interscholastic extracurricular eligibility.

STUDENTS WITH AN INDIVIDUAL EDUCATION PROGRAM

In order to be considered eligible to participate in competitive interscholastic activities, students with disabilities must pass at least four (4) courses per semester as required by their individual education program (IEP).

Homeless Students

Students who are determined to be experiencing homelessness by the school's homeless LEA shall be eligible for participation in interscholastic activities.

ARKANSAS ACTIVITIES ASSOCIATION

In addition to the foregoing rules, the district shall abide by the rules and regulations of AAA governing interscholastic activities. AAA provides catastrophic insurance coverage for students participating in AAA governed extracurricular activities who are enrolled in school. As a matter of District policy, no student may participate in a AAA governed extracurricular activity unless he or she is enrolled in a district school, to ensure all students are eligible for AAA catastrophic insurance.⁶

Intrascholastic Activities

AAA Governed Activities

Students participating in intrascholastic extracurricular activities that would be governed by AAA if they were to occur between students of different schools shall meet all interscholastic activity eligibility requirements to be eligible to participate in the comparable intrascholastic activity. The District will abide by the AAA Handbook for such activities to ensure District students are not disqualified from participating in interscholastic activities.⁷

Non-AAA Governed Activities

Unless made ineligible by District policies, all students shall be eligible to participate in non-AAA governed intrascholastic extracurricular activities. Intrascholastic activities designed for a particular grade(s) or course(s) shall require the student to be enrolled in the grade(s) or course(s).

School Choice Transfers

A student who transfers under a legal school choice option shall not be denied participation in an extracurricular activity where the student transfers based exclusively on the student's decision to transfer. A student who transfers after June 1 of the year the student enters grade seven (7) shall complete a Changing Schools/Athletic Participation form as defined by AAA, which must be signed by the:

- Superintendent of the student's resident school district;
- Superintendent of the nonresident school district to which the student transfers; and
- Parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The completed Changing Schools/Athletic Participation form shall be filed with the non-resident school district where the student transfers and the AAA. The Changing Schools/Athletic Participation form shall be signed by the superintendent of a student's resident school district and the superintendent of the nonresident school district to which a student transfers unless there is demonstrable evidence of recruiting by the receiving school district personnel or that the student is transferring to the nonresident school district solely for athletic purposes.

Cross References: 4.40 - HOMELESS STUDENTS

4.55—STUDENT PROMOTION AND RETENTION

4.56.1—EXTRACURRICULAR ACTIVITIES - ELEMENTARY

Legal References: Arkansas Activities Association Handbook

A.C.A. § 6-4-302

A.C.A. § 6-15-2907

A.C.A. § 6-16-151

A.C.A. § 6-18-114

A.C.A. § 6-18-115

A.C.A. § 6-18-227

A.C.A. § 6-18-713

A.C.A. § 6-18-1904

A.C.A. § 6-28-108

EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR HOME SCHOOLED STUDENTS

Home-schooled student means a student legally enrolled in an Arkansas home school and who meets or has met the criteria for being a home-schooled student, as established by A.C.A. § 6-15-503.

Interscholastic activity means an activity between schools subject to rules of the Arkansas Activities Association that is outside the regular curriculum of the school district, such as an athletic activity, fine arts program, or a special interest group or club.

Each school in the District shall post on its website its schedule of interscholastic activities, including sign-up, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule shall be available upon request.¹

Home-schooled students whose parents or guardians are legal residents of the school district will be permitted to pursue participation in an interscholastic activity in the student's resident school zone² as permitted by this policy.

Home-schooled students whose parent or legal guardian are not residents of the school district will be permitted to pursue participation in an interscholastic activity in the District if:

- The superintendent of the student's resident district and the superintendent of the District both agree in writing to allow the student to participate in interscholastic activities at the District; or ●
- The student's resident school does not offer the interscholastic activity and the superintendent of the non-resident district agrees to allow the student to enroll in the interscholastic activity.

Although not guaranteed participation in an interscholastic activity, home-school students who meet the provisions of this policy, AAA Rules, and applicable Arkansas statutes shall have an equal opportunity to try out and participate in interscholastic activities without discrimination. The District shall provide a reasonable alternative to any prerequisite for eligibility to participate in an interscholastic activity that the home-schooled student is unable to meet because of his or her enrollment in a home school.

No student shall be required to pay for individual or group instruction in order to participate in an interscholastic activity.

To be eligible to try out and participate in interscholastic activities, the student or the parent of a student shall mail or hand deliver the student's request to participate to the student's school's principal before the signup, tryout or participation deadline established for traditional students. Additionally, the student shall demonstrate academic eligibility by obtaining a minimum test score of the 30th percentile or better in the previous 12 months on the Stanford Achievement Test Series, Tenth Edition; another nationally recognized norm-referenced test; or a minimum score on a test approved by the State Board of Education.

A student who meets the requirements for eligibility to participate in an interscholastic activity is required to register for no more than one non-academic course³ in the District's school where the student is intending to participate in an interscholastic activity that coincides with the interscholastic activity in which the homeschooled student participates and shall be required to be at school only when participation in the interscholastic activity requires other students who participate in the interscholastic activity to be at school.

The student shall regularly attend the class in which the student is registered beginning no later than the eleventh (11th) day of the semester in which the student's interscholastic activity participation is desired. The student must attend the practices for the interscholastic activity to the same extent as is required of traditional students.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

A home-schooled student who has met the try out criteria; and who has been selected to participate in the interscholastic activity shall meet the following criteria that also apply to traditional students enrolled in the school:

- standards of behavior and codes of conduct;
- attend the practices for the interscholastic activity to the same extent as is required of traditional students; ●
- required drug testing;⁴
- permission slips, waivers, physical exams; and
- participation or activity fees.

Students who participate in extracurricular or athletic activities under this policy will be transported to and from the interscholastic activities on the same basis as other students are transported.

A home schooled student may begin participating in an interscholastic activity immediately upon being approved to participate by the District if:

- The home schooled student has not withdrawn from an Arkansas Activities Association member school; or
- The student has withdrawn from an AAA member school and enrolled in a home school but did not participate in an interscholastic activity that is a varsity sport at the student's resident district prior to the student's withdrawal from the AAA member school.

A student who withdrew from an AAA member school who participated in an interscholastic activity that is a varsity sport at the student's resident district during the previous three hundred sixty-five (365) days shall not be eligible to immediately participate in an interscholastic activity that is a varsity sport in the District. The student will not become eligible for full participation until the completion of the three hundred sixty-five (365) day period from when the student withdrew. A student who is not eligible for full participation may participate in tryouts, practices, classes, or other endeavors associated with the interscholastic activity until the completion of the three hundred sixty-five (365) day period from when the student withdrew.

Legal References: A.C.A. § 6-15-509

A.C.A. § 6-16-151

A.C.A. § 6-18-232

A.C.A. § 6-18-713

Arkansas Activities Association Handbook

Commissioner's Memo COM-18-009

Commissioner's Memo LS-18-015

Division of Elementary and Secondary Education Rules Governing Home Schools

ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOLED STUDENTS

The District allows private school and home schooled students whose parents, legal guardians, or other responsible adult with whom the student resides are residents of the District to attend academic courses offered by the District. The District will place a list of courses that a private school or home schooled student may request to attend on its website by:²

1. June 1 for courses to be offered during the Fall semester; and
2. November 1 for courses to be offered during the Spring semester.

A private school or home schooled student who desires to attend one or more of the available academic courses shall submit a written request to attend the academic course(s) to the superintendent, or designee, no later than:² a. August 1 for Fall semester courses; or

b. December 1 for Spring semester courses.

The superintendent, or designee, is authorized to waive the application deadline on a case by case basis. The

District permits a private school or home schooled student to attend a maximum of six (6) courses per semester.

The District may reject a private school or home schooled student's request for attendance if the District's acceptance would:⁴

- Require the addition of staff or classrooms;
- Exceed the capacity of a program, class, grade level, or school building;
- Cost the District more for the student to attend the academic course than the District receives for the student's attendance;
- Cause the District to provide educational services the District does not currently provide at a financial burden to the District; or

- Cause the District to be out of compliance with applicable laws and regulations regarding desegregation.

Requests to attend an academic course will be granted in the order the requests are received. Upon the receipt of a private or home schooled student's request to attend academic course(s), the District will date and time stamp the request for attendance. If a private school or home schooled student is denied attendance based on a lack of capacity and an opening in the requested course occurs prior to the start of the course, the District will use the date and time stamp on the request for attendance to determine the private school or home schooled student who will be notified of an opening in the requested course.

- As part of the request to attend academic courses in the District, a private school or home schooled student shall:
- o Indicate the course(s) the private school or home schooled student is interested in attending;
 - o If the course(s) the private school or home schooled student is interested in attending is being offered by the District in both a physical and a digital format, whether the private school or home schooled student intends to attend the physical course or the digital course;
 - o Submit, along with the student's application, a copy of the student's transcript indicating that the student has received credit for the course(s), or equivalent course(s), that are a prerequisite to the course(s) the student desires to attend at the District;
 - o Agree to follow the District's discipline policies; and
 - o Submit immunization documentation required by Policy 4.57—IMMUNIZATIONS

A private school or home schooled student who fails to attend an academic course by the eleventh (11) day of class or who is absent without excuse for eleven (11) consecutive days during the semester shall be dropped from the course; however, a private school or home schooled student shall not be considered truant for unexcused absences from the course(s) the student is attending at the District.

Private school or home schooled students shall receive a final grade and transcript for each academic course the student completes.

The responsibility for transportation of any private school or home schooled student attending academic courses in the District shall be borne by the student or the student's parents.

The opportunity provided to home schooled students under this policy is in addition to the opportunity provided in Policy 4.56.2—EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR HOME SCHOOLED STUDENTS.

Legal References: A.C.A. § 6-15-509

A.C.A. § 6-18-232

A.C.A. § 6-18-702

A.C.A. § 6-47-401 et seq.

DESE Rules Governing Distance and Digital Learning

DESE Rules Governing Kindergarten Through 12th Grade Immunization Requirements in

Arkansas Public Schools

Commissioner's Memo COM-19-021

RESIDENCE REQUIREMENTS

Definitions:

“In loco parentis” means relating to the responsibility to undertake the care and control of another person in the absence of:

1. Supervision by the person's parent or legal guardian; and
2. Formal legal approval.

"Reside" means to be physically present and to maintain a permanent place of abode for an average of no fewer than four (4) calendar days and nights per week for a primary purpose other than school attendance.

"Resident" means a student whose parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis reside in the school district.

"Residential address" means the physical location where the student's parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis reside in the school district. A student may use the residential address of a parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis only if the student resides at the same residential address and if the guardianship or other legal authority is not granted solely for educational needs or school attendance purposes.

The schools of the District shall be open and free through the completion of the secondary program to all persons between the ages of five (5) and twenty-one (21) years whose parents, legal guardians, persons having lawful control of the student, or person standing in loco parentis reside within the District and to all persons between those ages who have been legally transferred to the District for educational purposes.

Any person eighteen (18) years of age or older may establish a residence separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis for school attendance purposes.

In order for a person under the age of eighteen (18) years to establish a residence for the purpose of attending the District's schools separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis, the student is required to reside in the District for a primary purpose other than that of school attendance; however, a student previously enrolled in the district whose parents move the student into another District or who is placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty may continue to attend the district schools. A foster child who was previously enrolled in a District school and who has had a change in placement to a residence outside the District, may continue to remain enrolled in his/her current school unless the presiding court rules otherwise.

Under instances prescribed in A.C.A. 6-18-203, a child or ward of an employee of the district or of the education coop to which the district belongs may enroll in the district even though the employee and the employee's child or ward reside outside the district.

Children whose parent or legal guardian relocates within the state due to a mobilization, deployment, or available military housing while on active duty in or serving in the reserve component of a branch of the United States Armed Forces or National Guard may continue attending school in the school district the children were attending prior to the relocation or attend school in the school district where the children have relocated. A child may complete all remaining school years at the enrolled school district regardless of mobilization, deployment, or military status of the parent or guardian.

Cross References: HOMELESS STUDENTS

STUDENTS WHO ARE FOSTER CHILDREN

Legal References: A.C.A. § 6-4-302

A.C.A. § 6-18-202
A.C.A. § 6-18-203
A.C.A. § 6-28-108
A.C.A. § 9-28-113

ENTRANCE REQUIREMENTS

To enroll in a school in the District, the child must be a resident of the District as defined in District policy RESIDENCE REQUIREMENTS, meet the criteria outlined in HOMELESS STUDENTS or in policy STUDENTS

WHO ARE FOSTER CHILDREN, be accepted as a transfer student under the provisions of policy, or participate under a school choice option and submit the required paperwork as required by the choice option under Policy 4.5.

Students may enter kindergarten if they have reached the age of five (5) years on or before August 1 of the year in which they are seeking initial enrollment. Any student who has been enrolled in a state-accredited or state-approved kindergarten program in another state for at least sixty (60) days, will become five (5) years old during the year in which he/she is enrolled in kindergarten, and meets the basic residency requirement for school attendance may be enrolled in kindergarten upon written request to the District. Any student who was enrolled in a state-accredited or state-approved kindergarten program in another state or in a kindergarten program equivalent in another country, becomes a resident of this state as a direct result of active military orders or a court-ordered change of custody, will become five (5) years of age during the year in which he or she is enrolled in kindergarten, and meets the basic residency requirement for school attendance may be enrolled in kindergarten upon a written request to the District.

Any child who will be six (6) years of age on or before October 1 of the school year of enrollment and who has not completed a state-accredited kindergarten program shall be evaluated by the district and may be placed in the first grade if the results of the evaluation justify placement in the first grade and the child's parent or legal guardian agrees with placement in the first grade; otherwise the child shall be placed in kindergarten.

Any child may enter first grade in a District school if the child will attain the age of six (6) years during the school year in which the child is seeking enrollment and the child has successfully completed a kindergarten program in a public school in Arkansas

Any child who has been enrolled in the first grade in a state-accredited or state-approved elementary school in another state for a period of at least sixty (60) days, who will become age six (6) years during the school year in which he/she is enrolled in grade one (1), and who meets the basic residency requirements for school attendance may be enrolled in the first grade.

Students who move into the District from an accredited school shall be assigned to the same grade as they were attending in their previous school (mid-year transfers) or as they would have been assigned in their previous school. Private school students shall be evaluated by the District to determine their appropriate grade placement. Home school students enrolling or re-enrolling as a public school student shall be placed in accordance with policy 4.6-HOME SCHOOLING.

The district shall make no attempt to ascertain the immigration status, legal or illegal, of any student or his/her parent or legal guardian presenting for enrollment.

Prior to the child's admission to a District school:

1. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall furnish the child's social security number, or if they request, the District will assign the child a nine (9) digit number designated by the Division of Elementary and Secondary education.
2. The parent, legal guardian, or person having lawful control of the student, person standing in loco parentis shall provide the District with one (1) of the following documents indicating the child's age:
 - a. A birth certificate;
 - b. A statement by the local registrar or a county recorder certifying the child's date of birth;
 - c. An attested baptismal certificate;
 - d. A passport;
 - e. An affidavit of the date and place of birth by the child's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis;
 - f. Previous school records;
 - g. United States Military Identification
3. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall indicate on school registration forms whether the child has been expelled from school in any other school district or is a party to an expulsion proceeding. Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.
4. Immunizations, the child shall be age appropriately immunized or have an exemption issued by the Arkansas State

Department of Health.

Uniformed Services Member's Children

For the purposes of this policy:

"Activated reserve components" means members of the reserve component of the uniformed services who have received a notice of intent to deploy or mobilize under Title 10 of the United States Code, Title 32 of the United States Code, or state mobilization to active duty.

"Active duty" means full-time duty status in the active, uniformed services of the United States, including without limitation members of The National Guard and Reserve on active duty orders under 10 U.S.C. §§ chapters 1209 and 1211 or 42 U.S.C. §204.

"Deployment" means a period of time extending from six (6) months before a member of the uniformed services' departure from their home station on military orders through six (6) months after return to his or her home station.

"Dual status military technician" means a federal civilian employee who is:

- a. Employed un U.S.C. § 3101 or 32 U.S.C. § 709(b);
- b. Required as a condition of his or her employment to maintain membership in the Selected Reserve; and c. Assigned to a civilian position as a technician in the organizing, administering, instructing, or training of the Selected Reserve or in the maintenance and repair of supplies or equipment issued to the Selected Reserve of the United States Armed Forces.

"Eligible child" means the children of:

- Active duty members of the uniformed services;
- Members of the active and activated reserve components of the uniformed services;
- Members or veterans of the uniformed services who are severely injured and medically discharged or retired for a period of one (1) year after medical discharge or retirement;
- Members of the uniformed services who die on active duty or as a result of injuries sustained on active duty for a period of one (10 year after death;
- Dual status military technicians; and
- Traditional members of the National Guard and reserve components of the armed forces who are relocating to the state for employment or to serve as a member of an Arkansas - based reserve component unit.

"Traditional member of the National Guard or federal reserves" means an active member of the Selected Reserve subject to mobilization and deployment for which he or she attends monthly and annual training periods.

"Transition" means the:

- Formal and physical process of transitioning from public school to public school; or •
- Period of time in which a student moves from a sending district to a receiving district.

"Uniformed services" means the United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, United States Coast Guard, the National Oceanic and Atmospheric Administration Commissioned Officer Corps, the United States Commissioned Corps of the Public Health Services, and the state and federal reserve components of each of these bodies.

"Veteran" means an individual who served in the uniformed services and who was discharged or released from the uniformed services under conditions other than dishonorable.

The Superintendent shall designate an individual as the District's military education coordinator, who shall serve as the primary point of contact for an eligible child and for the eligible child's parent, legal guardian, person having lawful control of the eligible child, or person standing in loco parentis. The individual the Superintendent designates

as the District's military education coordinator shall have specialized knowledge regarding the educational needs of children of military families and the obstacles that children of military families face in obtaining education.

An eligible child as defined in this policy shall:

1. Be allowed to continue his/her enrollment at the grade level commensurate with his/her grade level he/she was in at the transition from his/her previous school, regardless of age;
2. Be eligible for enrollment in the next highest grade level, regardless of age if the student has satisfactorily completed the prerequisite grade level in his/her previous school;
3. Enter the District's school on the validated level from his/her previous accredited school when transferring into the District after the start of the school year;
4. Be enrolled in courses and programs the same as or similar to ones the student was enrolled in his/her previous school to the extent that space is available. This does not prohibit the District from performing subsequent evaluations to ensure appropriate placement and continued enrollment of the student in the courses/and/or programs;
5. Be provided services comparable to those the students with disabilities received in his/her previous school based on his/her Individualized Education Plan (IEP). This does not preclude the District from performing subsequent evaluations to ensure appropriate placement of the student;
6. Make reasonable accommodations and modifications to address the needs of an incoming student with disabilities, subject to an existing 504 or Title II Plan, necessary to provide the student with equal access to education. This does not preclude the District from performing subsequent evaluations to ensure proper placement of the student;
7. Be enrolled by an individual who had been given the special power of attorney for the student's guardianship. The individual shall have the power to take all other actions requiring parental participation and/or consent;
8. Be eligible to continue attending District schools if he/she has been placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty.

Following the receipt of advanced notice of the enrollment of an eligible student from a military family, the District shall treat the notice as a provisional enrollment and provide the student with materials regarding:

- a. Academic courses;
- b. Electives;
- c. Sports; and
- d. Other relevant information regarding the public school.

In the event that official copies of an eligible child's education records are not available at the time the eligible child is transferring, the District shall:

- o Pre-register and place an eligible child based on the eligible child's unofficial education records pending receipt of the eligible child's official records; and
- o Request the eligible child's official education records from the sending district.

To facilitate a smooth transition between the student's previous coursework and the curriculum best suited to ensure educational success in the student's new school, the District may enroll an inbound transitioning eligible student in digital coursework, if available, at the request of the military family.

International Exchange Students

"Host family" means the individual or family with whom an international exchange student is placed by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq.

"International exchange student" means a student who is placed with a host family by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq.

Before an international exchange student may attend a District school, the District requires all international student exchange visitor placement organizations that are placing international exchange students within the District to:

- Be certified by the Council on Standards for International Educational Travel;
- Provide documented proof of the international exchange student's English proficiency; and
- Notify the District at least three (3) weeks before the beginning of the academic semester the international exchange student plans to enroll in the District.

The District shall admit for enrollment and attendance an international exchange student who has been placed with a host family who resides within the District boundaries. The international exchange student shall attend the school in the District based on the attendance zone where the host family resides.⁶

Upon an international exchange student's arrival, the international exchange student may be required to submit to quarantine to prevent the spread of infectious diseases as may be necessary, which shall not exceed seven (7) days unless otherwise recommended by the Arkansas Department of Health or the Centers for Disease Control and Prevention.

International exchange students are expected to follow the District handbook and student code of conduct as the District has the authority to expel a student for violations of the school district's written student discipline policies or if the international exchange student presents a danger to the District's students or employees.

Statewide assessment results achieved by an international exchange student enrolled in the District shall be included in the District's results on the statewide assessments.⁷

The District shall provide English-language services to international exchange students as necessary.⁸

Cross Reference: 4.1-RESIDENCE REQUIREMENTS

4.4-STUDENT TRANSFERS

4.5- SCHOOL CHOICE

4.6-HOME SCHOOLING

4.34-COMMUNICABLE DISEASES AND PARASITES

4.40-HOMELESS STUDENTS

4.52-STUDENTS WHO ARE FOSTER CHILDREN

4.57-IMMUNIZATIONS

Legal References: A.C.A. § 6-4-302

A.C.A. § 6-4-309

A.C.A. § 6-15-504

A.C.A. § 6-18-107

A.C.A. § 6-18-201 (c)

A.C.A. § 6-18-207

A.C.A. § 6-18-208

A.C.A. § 6-18-234

A.C.A. §6-18-510
A.C.A. § 6-18-702
A.C.A. § 6-28-101 et seq.
A.C.A. § 9-28-113
DESE Rules Governing Student Discipline and School Safety
Plyler v Doe 457 US 202,221 (1982)

COMPULSORY ATTENDANCE REQUIREMENTS

Every parent, legal guardian, person having lawful control of the child, or person standing in loco parentis of any child age five (5) through seventeen (17) years on or before August 1 who resides, as defined by policy (RESIDENCE REQUIREMENTS), within the District shall enroll the child and ensure the attendance of the child at a District school with the following exceptions.

1. The child is enrolled in private or parochial school.
2. The child is being home-schooled and the conditions of policy (HOME SCHOOLING) have been met.
3. The child will not be age six (5) on or before August 1 of that particular school year and the parent, legal guardian, person having lawful control of the child, or person standing in loco parentis of the child elects not to have him/her attend kindergarten. A kindergarten waiver form prescribed by regulation of the Division of Elementary and Secondary Education must be signed and on file with the District Administrative office.
4. The child has received a high school diploma or its equivalent as determined by the State Board of Education.
5. The child is age sixteen (16) or above and is enrolled in a post-secondary vocational-technical institution, a community college, or a two-year or four-year institution of higher education.
6. The child is age sixteen (16) or seventeen (17) and has met the requirements to enroll in an adult education program as defined by A.C.A. A # 6-18-201.

Legal References: A.C.A. A # 6-18-201 (b)

A.C.A # 6-18-207

STUDENT TRANSFERS

Transfer applications received by the District shall be placed on the Board's next meeting agenda.¹ At least five (5) days before the meeting where the transfer application appears on the agenda, the superintendent shall notify the Board regarding:

- All transfer applications received since the last meeting; and
- The superintendent's recommendation concerning each transfer application.

Each transfer application shall be considered individually and receive a separate vote by the Board. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to a student who submits a transfer application shall be given at least five (5) minutes to present the student's case for a transfer to the Board.

The Board may reject a non resident's application for admission if its acceptance would necessitate the addition of staff or classrooms, exceed the capacity of a program, class, grade level, or school building, or cause the District to provide educational services not currently provided in the affected school. The District shall reject all applications that would cause it to be out of compliance with applicable laws and regulations regarding desegregation.

If the superintendent intends to recommend the Board deny the transfer application, the superintendent shall provide a written explanation of the reasons for the recommendation to the Board and the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student who submitted a transfer application that was rejected may appeal the decision of the Board to the State Board of Education.

Any student transferring from a school accredited by the Division of Elementary and Secondary Education (DESE) to a school in this district shall be placed into the same grade the student would have been in had the student remained at the former school. Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities.

Any student transferring from a school that is not accredited by the DESE to a District school shall be evaluated by District staff to determine the student's appropriate grade placement. A student transferring from homeschool will be placed in accordance with Policy 4.6-HOME SCHOOLING.

Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.

Except as otherwise required or permitted by law, the responsibility for transportation of any nonresident student admitted to a school in this District shall be borne by the student or the student's parents. The District and the resident district may enter into a written agreement with the student or student's parents to provide transportation to or from the District, or both.

Legal References: A.C.A. 6-15-504

A.C.A. 6-18-316

A.C.A. 6-18-317

A.C.A. 6-18-510

A.C.A. 9-28-113(b)(4)

A.C.A. 9-28-205

SCHOOL CHOICE

Standard School Choice

Exemption

The District is under an enforceable desegregation court order/court-approved desegregation plan that explicitly limits the transfer of students between school districts and has submitted the appropriate documentation to the Division of Elementary and Secondary Education (DESE). As a result of the desegregation order/desegregation plan, the District is exempt from the provisions of the Public School Choice Act of 2015 (Standard School Choice) and the Arkansas Opportunity Public School Choice Act (Opportunity School Choice). The District shall notify the superintendents of each of its geographically contiguous school districts of its exemption. The exemption prohibits the District from accepting any school choice applications from students wishing to transfer into or out of the District through standard School Choice or Opportunity School Choice.

Definition:

For the purpose of this policy, "sibling" means each of two (2) or more children having a common parent in common by blood, adoption, marriage, or foster care.

School Choice Transfers Out of the District

All Standard School Choice applications for transfers out of the District shall be granted.

School Choice Transfers Into the District

Capacity Determination and Public Pronouncement

The Board of Directors will annually adopt a resolution containing the capacity standards the District will use in

determining whether to accept or deny a school choice application from another district's resident student. The resolution will contain the acceptance determination criteria identified by academic program, class, grade level, and individual school. The school is not obligated to add any teachers, other staff, or classrooms to accommodate choice applications. In determining the capacity of the District to accept choice applications, the Board of Directors shall consider the probable, locally generated growth in student enrollment based on recent District enrollment history.

The District shall advertise in appropriate broadcast media and either print media or on the Internet to inform students and parents in adjoining districts of the range of possible openings available under the School Choice program. The public pronouncements shall state the application deadline, the requirements and procedures for participation in the program, and include contact information for the primary point of contact at the District for school choice questions. Such pronouncements shall be made no later than January.

Application Process

The student's parent shall submit a school choice application on a form approved by DESE to this District and to the student's resident district. Except for students who are transferring under Uniformed Service Member Dependent School Choice, the transfer application must be postmarked, emailed, or hand delivered between January 1 and June 1 of the year preceding the fall semester the applicant would begin school in the District. The District shall date and time stamp all applications the District receives as both the resident and nonresident district as they are received in the District's central office. Except for applications from students who are transferring under Uniformed Service Member Dependent School Choice, applications postmarked or hand delivered on or after May 2 will not be accepted. Statutorily, preference is required to be given to siblings (as defined in this policy) of students who are already enrolled in the District. Therefore, siblings whose applications fit the capacity standards approved by the Board of Directors may be approved ahead of an otherwise qualified non-sibling applicant who submitted an earlier application as identified by the application's date and time stamp.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, no earlier than January 1 of each year, the Superintendent will consider all properly submitted applications for School Choice. By July 1, the Superintendent shall notify the parent and the student's resident district, in writing, of the decision to accept or reject the application.

Accepted Applications

Applications which fit within the District's stated capacity standards shall be provisionally accepted, in writing, with the notification letter stating:

- A reasonable timeline by which the student shall enroll in the District by taking the steps detailed in the letter, including submission of all required documents. If the student fails to enroll within the stated timeline, or if all necessary steps to complete the enrollment are not taken, or examination of the documentation indicates the applicant does not meet the District's stated capacity standards, the acceptance shall be null and void.

- Instructions for the renewal procedure for succeeding school years.

Students whose applications have been accepted and who have enrolled in the District, are eligible to continue their enrollment until completing his/her secondary education. Continued enrollment is conditioned upon the student meeting applicable statutory and District policy requirements and the renewal procedure for succeeding school years is followed. Any student who has been accepted under choice and who fails to initially enroll under the timelines and provisions provided in this policy; chooses to return to his/her resident district; or enrolls in a home school or private school voids the transfer and must reapply if, in the future, the student seeks another school choice transfer. A subsequent transfer application will be subject to the capacity standards applicable to the year in which the application is considered by the District.

A present or future sibling, as defined in this policy, of a student who continues enrollment in this District may

enroll in the District until the sibling of the transfer student completes his/her secondary education. Applications of siblings of presently enrolled choice students are subject to the provisions of this policy including the capacity standards applicable to the year in which the sibling's application is considered by the District.

Students whose applications have been accepted and who have enrolled in the district shall not be discriminated against on the basis of gender, national origin, race, ethnicity, religion, or disability.

Rejected Applications

The District may reject an application for a transfer into the District under school choice if its acceptance would exceed the capacity standards specified by the Board of Director's resolution. However, the decision to accept or reject an application may not be based on the student's previous academic achievement, athletic or other extracurricular ability, English proficiency level, or previous disciplinary proceedings other than a current expulsion.⁷

An application may be provisionally rejected if it is for an opening that was included in the District's capacity resolution, but was provisionally filled by an earlier applicant. If the provisionally approved applicant subsequently does not enroll in the District, the provisionally rejected applicant could be provisionally approved and would have to meet the acceptance requirements to be eligible to enroll in the district.

Rejection of applications shall be in writing and shall state the reason(s) for the rejection. Unless the student's application was rejected due to the application not being timely received by both the resident and nonresident districts, a student whose application was rejected may request a hearing before the State Board of Education to reconsider the application. The request for a hearing must be submitted in writing to the State Board within ten (10) days of receiving the rejection letter from the District.

Facilities Distress School Choice Applications

There are a few exceptions from the provisions of the rest of this policy that govern choice transfers triggered by facilities distress. Any student attending a school district that has been identified as being in facilities distress may transfer under the provisions of this policy, but with the following four (4) differences.

- The receiving district cannot be in facilities distress;
- The transfer is only available for the duration of the time the student's resident district remains in facilities distress;
- The student is not required to meet the May 1 application deadline; and
- The student's resident district is responsible for the cost of transporting the student to this District's school.

Opportunity School Choice

Transfers Into or Within the District

For the purposes of this section of the policy, a "lack of capacity" is defined as when the receiving school has reached the maximum student-to-teacher ratio allowed under federal or state law, the DESE Rules for the Standards for Accreditation, or other applicable rules. There is a lack of capacity if, as of the date of the application for Opportunity School Choice, ninety-five percent (95%) or more of the seats at the grade level at the nonresident school are filled.

Unless there is a lack of capacity at the District's school or the transfer conflicts with the provisions of a federal desegregation order applicable to the District, a student may transfer from the student's assigned school to another school in the District or from the student's resident district into the District if:

- Either;
 - The student's resident district has been classified by the state board as in need of Level 5-intensive

- support; or
- o The student's assigned school has a rating of "F"; and
- Except for students who are transferring under Uniformed Service Member Dependents School Choice, the student's parent, guardian, or the student if the student is over eighteen (18) years of age has submitted an application of the student's request to transfer by no earlier than January 1 and no later than May 1 of the school year before the school year the student intends to transfer to both the sending and receiving school districts.

Except for students who are transferring under Uniformed Service Members Dependent School Choice or seeking to transfer within the District, the Superintendent shall notify in writing the parent or guardian, or the student if the student is over eighteen (18) years of age, and the student's resident district whether the Opportunity School Choice application has been accepted or rejected by no later than July 1 of the school year the student is seeking to enroll. If the student is seeking a transfer within the District, the Superintendent shall notify in writing the parent or guardian, or the student if the student is over eighteen (18) years of age, whether the Opportunity School Choice application has been accepted or rejected within fifteen (15) days from receipt of the student's application. The notification shall be sent via First-Class Mail to the address on the application.

If the application is accepted, the notification letter shall state the deadline by which the student must enroll in the receiving school or the transfer will be null and void.

If the District rejects the application, the District shall state in the notification letter the specific reasons for the rejection. Unless the student's application was rejected due to the application not being timely received by both the resident and nonresident districts, a parent or guardian, or the student if the student is over eighteen (18) years of age, may appeal the District's decision to deny the application to the State Board of Education. The appeal must be in writing to the State Board of Education via hand delivery or certified mail, return receipt requested, no later than ten (10) calendar days, excluding weekends and legal holidays, after the notice of rejection was received from the District.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, a student's transfer under Opportunity School choice is effective at the beginning of the next school year and the student's enrollment is irrevocable for the duration of the school year and is renewable until the student completes high school or is beyond the legal age of enrollment. This provision for continuing eligibility under Opportunity Choice does not negate the student's right to apply for transfer to a district other than the student's assigned school or resident district under the Standard Choice provisions of this policy.

The District may, but is not obligated to provide transportation to and from the transferring district.

Transfers out of, or within, the District

If a District school receives a rating of "F" or the District has been classified by the State Board as in need of Level 5 Intensive Support the District shall timely notify parents, guardians, or students, if over eighteen (18) years of age, as soon as practicable after the school or district designation is made of all options available under Opportunity Choice. The District shall offer the parent or guardian, or the student if the student is over eighteen (18) years of age, an opportunity to submit an application to enroll the student in:

1. A school district that has not been classified by the State Board as in need of Level 5 Intensive Support; or
2. If there is more than one school within the District covering the grade level of the student seeking to transfer that does not have a rating of "F", a public school within the District that is nearest to the student's legal residence that does not have a rating of "F"; or
3. If there is not more than one school within the District covering the grade level of the student seeking to transfer that does not have a rating of "F", a public school that does not have a rating of "F" within a school district that has not been classified by the State Board as in need of Level 5 Intensive Support.

Additionally, the District shall request public service announcements to be made over the broadcast media and in the print media at such times and in such a manner as to inform parents or guardians of students in adjoining districts of the availability of the program, the application deadline, and the requirements and procedure for nonresident students to participate in the program.

Uniformed Service Member Dependent School Choice

"Uniformed service member" means an active or reserve component member of the:

- United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, or United States Coast Guard;
- National Oceanic and Atmospheric Administration Commissioned Officer Corps; or ● United States Commissioned Corps of the Public Health Service.

"Uniformed service veteran" means a former uniformed service member who has been discharged under conditions other than dishonorable.

A student shall be eligible for school choice under Uniformed Service Member Dependent School Choice if the student is a dependent of a:

- Uniformed service member in full-time active-duty status;
- Surviving spouse of a uniformed service member;
- Reserve component uniformed service member during the period six (6) months before until six (6) months after a Title 10, Title 32, or state active duty mobilization and service; or
- Uniformed service veteran who is returning to civilian status at the conclusion of the uniformed service veteran's active duty status.

A student's parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student shall submit a school choice application by mail, e-mail, or in person to the student's nonresident district and resident district. The application shall be accompanied by:

- a. A copy of the identification card of the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis that qualifies the student under this section; and
- b. A copy of the official orders, assignment notification, or notice of mobilization of the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis.

The application deadline required under Standard School Choice and Opportunity School Choice shall not apply to uniformed service member dependents.

The superintendent of the nonresident district shall notify the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis of the student in writing whether the student's application has been accepted or rejected within fifteen (15) days of the nonresident district's receipt of the application. A student's transfer under the Uniformed Services Member Dependent School Choice is effective immediately upon the nonresident district's written notification of an acceptance.

A student shall be permitted only one (1) school transfer per academic year.

The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to a student shall be responsible for transportation of the student.

Unsafe School Choice Program

Any student that becomes the victim of a violent criminal offense while in or on the grounds of a District school or who is attending a school classified by DESE as a persistently dangerous public school shall be allowed to attend a safe public school within the District.

Legal References: A.C.A. 6-1-106

A.C.A. 6-13-113

A.C.A. 6-15-2915

A.C.A. 6-18-1901 et seq.

A.C.A. 6-18-233

A.C.A. 6-18-320

A.C.A. 6-18-227

A.C.A. 6-18-510

A.C.A. 6-18-1901 et seq.

A.C.A. 6-21-812

DESE Rules Governing Public School Choice

School Choice Capacity Resolution

Whereas:

- The Board of Directors at the Bradford School District has approved by a vote of the Board, the following capacity resolution for school choice applications for the 2023 - 2024 school year under the provisions of policy 4.5--SCHOOL CHOICE and applicable Arkansas law.
- Except for applicants who are transferring under Uniformed Service Member Dependent School Choice applicants, whose applications meet the provisions of policy 4.5--SCHOOL CHOICE, will be sent a provisional acceptance notification letter which will give instructions on the necessary steps and timelines to enroll in the District. Provisional acceptance shall be determined prior to July 1 with a final decision to be made by July 1 based on the district's available capacity for each academic program, class, grade level, and individual school.
- Applications will not be accepted if the applications:
 - Are received, electronically timestamped, or postmarked before January 1, unless the application is from a student who is transferring under Uniformed Service Member Dependent School Choice;
 - Are received, electronically timestamped, or postmarked after May 1, unless the application is postmarked before May 1 or is from a student who is transferring under Uniformed Service Member Dependent School Choice;
 - Are to a student's resident district that has declared itself exempt due to an existing desegregation order; or

- The student is transferring under Uniformed Service Member Dependent School Choice and the application is not accompanied by relevant documentation.
- The district reserves to itself the ability to determine, based on an examination of student records obtained from the prior district, and other information, whether any student would require a different class, course or courses, program of instruction, or special services than originally applied for. If such an examination determines that capacity has been reached in the appropriate class, course or program of instruction, or that additional staff would have to be hired for the applicant, the District shall rescind the original provisional acceptance letter and deny the Choice transfer for that student.
- The district reserves to itself the ability to determine, based on an examination of student records obtained from the prior district, and other information, whether any student would require a different class, course or courses, program of instruction , or special services than originally applied for. If such an examination determines that capacity has been reached in the appropriate class, course of program of instruction, or that additional staff would have to be hired for the applicant, the District shall rescind the original provisional acceptance letter and deny the Choice transfer for that student.
- The district reserves to itself the ability to decline to accept under school choice any student whose acceptance would require the district to add additional staff to exceed the District's current grade, program, or building capacity.

THEREFORE, let it be resolved that these shall constitute the School Choice openings at the beginning of the School Choice enrollment period for the school-year: 2023-2024.

HOME SCHOOLING

Enrollment in Home School

Parents or legal guardians desiring to provide a home school for their children must give written notice to the Superintendent of their intent to home school and sign a waiver acknowledging that the State of Arkansas is not liable for the education of their children during the time the parents choose to home school. The notice shall be given:

1. At the beginning of each school year, but no later than August 15;
2. By December 15 for parents who decide to start home schooling at the beginning of the spring semester; 3. Five (5) school days prior to withdrawing the child (providing the student is not currently under disciplinary action for violation of any written school policy, including, but not limited to, excessive absences) and at the beginning of each school year thereafter; or
4. Within thirty (30) calendar days of the parent or legal guardian establishing residency within the district during the school year.

Written notice of the parent or legal guardian's intent to home school shall be delivered to the Superintendent through any of the following methods:

- Electronically, including without limitation by use of the Division of Elementary and Secondary Educations's DESE online system; Email; or Facsimile;
- By mail; or
- In person.

The notice shall include:

- a. The name, sex, date of birth, grade level, and the name and address of the school last attended, if any; b. The mailing address and telephone number of the home school;
- c. The name of the parent or legal guardian providing the home school;
- d. Indicate if the home-school student intends to participate in extracurricular activities during the school year; e. A statement of whether the home-schooled student plans to seek a high school equivalency diploma during the current school year;
- g. A statement that the parent or legal guardian agrees that the parent or legal guardian is responsible for the education of their children during the time the parents or legal guardians choose to home school; and h. A signature of the parent or legal guardian.
- i. The basic core curriculum to be offered;
- j. The proposed schedule of instruction; and
- k. The qualifications of the parent-teacher.

To aid the District in providing a free and appropriate public education to students in need of special education services, the parents or legal guardians home-schooling their children shall provide information which might indicate the need for special education services.

A student who has been temporarily issued items, resources, supplies, materials, or other property belonging to the District is eligible for enrollment in a home school during the school year after:

- The items, resources, supplies, materials, or other property belonging to the District have been returned to the District;
- The items, resources, supplies, materials, or other property belonging to the District have been paid for; or • The semester has ended.

The superintendent or the board of directors may waive the required five (5) school day waiting period for a student's enrollment in home school during a semester if the superintendent or the board of directors is satisfied with the return of temporarily issued items, resources, supplies, materials, or other District property.

Enrollment or Re-enrollment in Public School

A homeschooled student who wishes to enroll or re-enroll in a District school shall submit:

- A transcript listing all courses taken and semester grades from the home school;
- Score of at least the thirtieth percentile on a nationally recognized norm-referenced assessment taken in the past year; and
- A portfolio of indicators of the home-school student's academic progress, including without limitation:
 - o Curricula used in the home school;
 - o Tests taken and lessons completed by the home-schooled student; and
 - o Other indicators of the home-schooled student's academic progress.

If a home-schooled student is unable to provide a nationally recognized norm-referenced score, the District may either assess the student using a nationally recognized norm-referenced assessment or waive the requirement for a nationally recognized norm-referenced assessment score.

A home-schooled student who enrolls or re-enrolls in the District will be placed at a grade level and academic course level equivalent to or higher than the home-schooled students' grade level and academic course level in the home school:

1. As indicated by the documentation submitted by the home –schooled student;
2. By mutual agreement between the public school and the home-schooled student's parent or legal guardian;

or

3. If the home-schooled student fails to provide the documentation required by this policy, with the exception of the nationally recognized norm-referenced assessment score, the District may have sole authority to determine the home-schooled student's grade placement and course credits. The District will determine the home-school student's grade placement and course credits in the same manner the District uses when determining grade placement and course credits for students enrolling or re-enrolling in the District who attended another public or private school.

The District shall afford a home-schooled student who enrolls or re-enrolls in a public school the same rights and privileges enjoyed by the District's other students. The District shall not deny a home-schooled student who enrolls or re-enrolls in the District any of the following on the basis of the student having attended a home school:

- a. Award of course credits earned in the home school;
- b. Placement in the proper grade level and promotion to the next grade level;
- c. Participation in any academic or extracurricular activity;
- d. Membership in school-sponsored clubs, associations, or organizations;
- e. A diploma or graduation, so long as the student has enrolled or re-enrolled in the District to attend classes for at least the nine (9) months immediately prior to graduation; or
- f. Scholarships.

Legal References: A.C.A. 6-15-503

A.C.A. 6-15-504

A.C.A.6-41-103

A.C.A. 6-41-206

DESE Rules Governing Home Schools

ABSENCES

If any student's Individual Education Program (IEP) or 504 Plan conflicts with this policy, the requirements of the student's IEP or 504 Plan take precedence.

Education is more than the grades students receive in their courses. Important as that is, students' regular attendance at school, whether in person or digitally, is essential to their social and cultural development and helps prepare them to accept responsibilities they will face as an adult. Interactions with other students and participation in the instruction within the classroom enrich the learning environment and promote a continuity of instruction which results in higher student achievement.

Absences for students enrolled in synchronous digital courses shall be determined in the same manner as for District students attending courses in person..

Excused Absences

Excused absences are those where the student was on official school business or when the absence was due to one of the following reasons

1. The student's illness or when attendance could jeopardize the health of other students. A maximum of six (6) such days are allowed per semester unless the condition(s) causing such absences is of a chronic or recurring nature, is medically documented, and approved by the principal.
2. Death or serious illness in their immediate family;

3. Observance of recognized holidays observed by the student's faith;
4. Attendance at an appointment with a government agency;
5. Attendance at a medical appointment;
6. Exceptional circumstances with prior approval of the principal; or
7. Participation in an FFA, FHA, or 4-H sanctioned activity;
8. Participation in the election poll workers program for high school students.
9. Absences granted to allow a student to visit his/her parent or legal guardian who is a member of the military and been called to active duty, is on leave from active duty, or has returned from deployment to a combat zone or combat support posting. The number of additional excused absences shall be at the discretion of the superintendent or designee.
10. Absences granted, at the Superintendent's discretion, to seventeen (17) year-old students who join the Arkansas National Guard while in eleventh grade to complete basic combat training between grades eleven (11) and (12).
11. Absences for students excluded from school by the Arkansas Department of Health during a disease outbreak because the student has an immunization waiver or whose immunizations are not up to date.
12. Absences due to conditions related to pregnancy or parenting, including without limitation:
 - Labor, delivery, and recovery;
 - Prenatal and postnatal medical appointments and other medically necessary, pregnancy-related absences; • The illness or medical appointment of a child belonging to a parent who is enrolled at a District school; • A legal appointment related to pregnancy or parenting, including without limitation:
 - Adoption;
 - Custody; and
 - Visitation;
 - A reasonable amount of time to accommodate a lactating student's need to express breast milk or to breastfeed the student's child on the District's campus; and
 - At least ten (10) school days of absences for both a parenting mother and a parenting father after the birth of a child.⁶

Students who serve as pages for a member of the General Assembly shall be considered on instructional assignment and shall not be considered absent from school for the day the student is serving as a page.

Up to one (1) time during each scheduled election, a student shall not be considered absent from school for the time the student accompanies the student's parent when the parent is exercising the parent's right to vote in a scheduled election.

In order for the absence to be considered excused, the student must:

- a. Bring a written statement to the principal or designee upon the student's return to school from the student's parent, legal guardian, or treating physician stating the reason for the student's absence; or b. If the student is attending the District's courses digitally, upload a written statement from the student's parent, legal guardian, or treating physician stating the reason for the student's absence through the District's digital course management platform for review by the principal or designee.
- c. Provide documentation as proof of a student's participation in an activity or program scheduled and approved by the 4-H program that is provided by a 4-H county extension agent, 4-H educator, or other

appropriate entity associated with the 4-H activity or program.

A written statement presented or uploaded for an absence having occurred more than five (5) school days prior to its presentation or upload will not be accepted.

Unexcused Absences

Absences that are not defined above; do not have an accompanying note from the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis, the student's treating physician, or a 4-H county extension agent, 4-H educator, or other appropriate entity associated with the 4-H activity or program; or have an accompanying note that is not presented or uploaded within the timeline required by this policy, shall be considered as unexcused absences. Students with **ten (10)** unexcused absences in a course in a semester may not receive credit for that course. At the discretion of the principal after consultation with persons having knowledge of the circumstances of the unexcused absences, the student may be denied promotion or graduation. Excessive absences shall not be a reason for expulsion or dismissal of a student.

When a student has **three (3)** unexcused absences, his/her parents, legal guardians, persons with lawful control of the student, or persons standing in loco parentis shall be notified. Notification shall be by telephone by the end of the school day in which such absence occurred or by regular mail with a return address sent no later than the following school day.

Whenever a student exceeds **ten (10)** unexcused absences in a semester, the District shall notify the prosecuting authority and the parent, legal guardian, person having lawful control of the student, or persons standing in loco parentis shall be subject to a civil penalty as prescribed by law.

At any time prior to when a student exceeds the number of unexcused absences permitted by this policy, the student, or his/her parent, legal guardian, person with lawful control of the student, or person standing in loco parentis may petition the school or district's administration for special arrangements to address the student's unexcused absences. If formal arrangements are granted, they shall be formalized into a written agreement which will include the conditions of the agreement and the consequences for failing to fulfill the agreement's requirements. The agreement shall be signed by the student, the student's parent, legal guardian, person having lawful control of the student; or person standing in loco parentis, and the school or district administrator or designee.

Students who attend in-school suspension shall not be counted absent for those days.

Days missed due to out-of-school suspension or expulsion shall be unexcused absences.

The District shall notify the Department of Finance and Administration whenever a student fourteen (14) years of age or older is no longer in school. The Department of Finance and Administration is required to suspend the former student's operator's license unless he/she meets certain requirements specified in the statute.

Cross References: 4.8 - MAKE-UP WORK

4.57 – IMMUNIZATIONS

5.11 – DIGITAL LEARNING COURSES

5.29 - WELLNESS POLICY

Legal References: A.C.A. § 6-4-302

A.C.A. § 6-18-209

A.C.A. § 6-18-213

A.C.A. § 6-18-220

A.C.A. § 6-18-222

A.C.A. § 6-18-229
A.C.A. § 6-18-231
A.C.A. § 6-18-234
A.C.A. § 6-18-235
A.C.A. § 6-18-507 (g)
A.C.A. § 6-18-702
A.C.A. § 6-28-114
A.C.A. § 7-4-116
A.C.A. § 9-28-113 (f)
A.C.A. § 27-16-701

Division of Elementary and Secondary Education Rules Governing Distance and Digital

Learning

MAKE-UP WORK

Students who miss school due to an excused absence shall be allowed to make up the work they missed during their absence under the following rules.

1. Students are responsible for asking the teachers of the classes they missed what assignments they need to make up.
2. Teachers are responsible for providing the missed assignments when asked by a returning student.
3. Students are required to ask for their assignments on their first day back at school or their first class day after they return.
4. Make up tests are to be rescheduled at the discretion of the teacher, but must be aligned with the schedule of the missed work to be made up.
5. Students shall have one class day to make- up their work for each class day they are absent.
6. Make up work which is not turned in within the make-up schedule for that assignment shall receive a zero.
7. Students are responsible for turning in their make-up work without the teacher having to ask for it.
8. Students who are absent on the day their make-up work is due must turn in their work the day they return to school whether or not the class for which the work is due meets the day of their return.
9. As required/permitted by the student's Individual Education Program or 504 Plan.

Work may not be made up for credit for unexcused absences **unless** the unexcused absences are part of a signed agreement as permitted by policy 4.7 - ABSENCES.

Work for students serving an out-of-school suspension or expulsion shall be in accordance with the District's programs, measures, or alternative means and methods to continue student engagement and access to education during the student's period of suspension or expulsion.

In lieu of the timeline above, assignments for students who are excluded from school by the Arkansas Department of Health during a disease outbreak are to be made up as set forth in policy 4.5.7 - IMMUNIZATIONS.

In addition to the make-up work process above, at the conclusion of a pregnancy-related or parenting-related period of absence, a student may choose from various options to make up missed work, including without limitation:

- a. Retaking a semester at the District school where the student is enrolled;
- b. Participating in an online course credit recovery program;
- c. Being granted six (6) weeks to continue at the same pace and finish the semester at a later date, provided that the student may:
 - Complete the student's coursework within the current school year; or
 - Attend previously scheduled summer school classes made available by the District Where the student is enrolled; and
- d. Receiving home-based instruction services.

Cross Reference: ABSENCES

4.5.7-Immunizations

Legal References: A.C.A. 6-16-1406

A.C.A. 6-18-234

A.C.A. 6-18-502

DESE Rules Governing Student Discipline and School Safety

TARDIES

Promptness is an important character trait that District staff is encouraged to model and help develop in our schools' students. At the same time, promptness is the responsibility of each student. Students who are late to class show a disregard for both the teacher and their classmates which compromises potential student achievement. Students will be considered tardy if they are not in their classroom when the tardy bell rings. Tardies that become a discipline problem could cause students to lose the privilege to leave early, students could be placed in In-School-Suspension.

CLOSED CAMPUS

All schools in the District shall operate closed campuses. Students are required to stay on campus from their arrival until dismissal at the end of the regular school day unless given permission to leave the campus by a school official. Students must sign out in the office upon their departure.

EQUAL EDUCATIONAL OPPORTUNITY

No student in the Bradford School District shall, on the grounds of race, color, religion, national origin, sex, sexual orientation, gender identity, age, or disability be excluded from participation in, or denied the benefits of, or subjected to discrimination under any educational program or activity sponsored by the District. The District has a limited open forum granting equal access to the Boy Scouts of America and other youth groups.

Injuries on non-discrimination may be directed to Sarah Wickliffe, who may be reached by phone at (501)344-2707 or by email at swickliffe@bradford.k12.ar.us.

Any person may report sex discrimination, including sexual harassment, to the Title IX Coordinator in person or by using the mailing address, telephone number, or email address provided above. A report may be made at any time, including during non-business hours, and may be on the individual's own behalf or on behalf of another individual who is the person alleged to be the victim of conduct that could constitute sex discrimination or sexual harassment.

For further information on notice of non-discrimination or to file a complaint, visit <https://www2ed.gov/about/offices/list/ocr/complaintintro.html>; for the address and phone number of the office that serves your area, or call 1-800-421-3481.

Legal References: A.C.A.6-10-132

A.C.A. 6-18-514

28C.F.R.35.106

34C.F.R.100.6

34C.F.R.104.8

34C.F.R. 106.8

34C.F.R.106.9

34C.F.R.108.9

34C.F.R.110.25

SPECIAL EDUCATION

In accordance with the Individuals With Disabilities Education Act (IDEA), Section 504 of the Rehabilitation Act of 1973, the Americans With Disabilities Act, and Arkansas Statutes, the district shall provide a free appropriate public education and necessary related services to all children with disabilities who reside: Within the district boundaries; or Outside of the District boundaries but are enrolled in the District. (Reference Policy 4.49)

It is the intent of the district to ensure that students who are disabled within the definition of Section 504 of the Rehabilitation Act of 1973 are identified, evaluated and provided with appropriate educational services. Students may be disabled within the meaning of Section 504 of the Rehabilitation Act even though they do not require services pursuant to the IDEA.

For students eligible for services under IDEA, the District shall follow procedures for identification, evaluation, placement, and delivery of services to children with disabilities provided in the state and federal statutes governing special education. Implementation of an Individualized Education Program (IEP) in accordance with the IDEA satisfies the district's obligation to provide a free and appropriate education under Section 504.

The Board directs the superintendent to ensure procedures are in place for the implementation of special education services and that programs are developed to conform to the requirements of state and federal legislation. The superintendent is responsible for appointing a district coordinator for overseeing district fulfillment of its responsibilities regarding students with disabilities. Among the coordinator's responsibilities shall be ensuring district enforcement of the due process rights of students with disabilities and their parents.

Legal References: 34 C.F.R. part 300

20 U.S.C. §1400 et seq. Individuals with Disabilities Education Act,
A.C.A. §6-41-201 et seq.

29 U.S.C. 794

42 U.S.C. 12101

PARENTAL INVOLVEMENT

The Bradford School District is committed to promoting parental involvement. Our schools will involve parents in the district in the development of policies and the process of school review through the following types of activities: parental involvement group meetings, conducting parent surveys, consultation, scheduled parent meetings, conferences, school improvement meetings.

Bradford School District Parent Center is located on the corner of Goad Road in the white house. The Parent Center is open during school hours (8:00-3:15). The center has information on the following topics: Careers, Conflict Resolution, Alcohol and Drugs, Health and Nutrition, Character Building. There is a computer in the parent center if you want to look up information or check your child's grades. The parent center coordinator, Kayla Lock, is available to help you locate any information or resources.

STUDENT ORGANIZATIONS / EQUAL ACCESS

Noncurriculum-related secondary school student organizations wishing to conduct meetings on school premises during noninstructional time shall not be denied equal access on the basis of the religious, political, philosophical, or other content of the speech at such meetings. Such meetings must meet the following criteria. 1. The meeting is to be voluntary and student initiated;

2. There is no sponsorship of the meeting by the school, the government, or its agents of employees;

3. The meeting must occur during noninstructional time;

4. Employees or agents of the school are present at religious meetings only in a nonparticipatory capacity;

5. The meeting does not materially and substantially interfere with the orderly conduct of educational activities

within the school; and

6. Nonschool persons may not direct, conduct, control, or regularly attend activities of student groups.

All meetings held on school premises must be scheduled and approved by the principal. The school, its agents, and employees retain the authority to maintain order and discipline, to protect the well-being of students and faculty, and to assure that attendance of students at meetings is voluntary.

Fraternities, sororities, and secret societies are forbidden in the District's schools. Membership to student organizations shall not be by a vote of the organization's members, nor be restricted by the student's race, religion, sex, national origin, or other arbitrary criteria. Hazing, as defined by law, is forbidden in connection with initiation into, or affiliation with, any student organization, extracurricular activity or sport program. Students who are convicted of participation in hazing or the failure to report hazing shall be expelled.

A.C.A. 6-5-20 2 requires the automatic expulsion of a student who is convicted of hazing.

Legal References: A.C.A.6-10-132

A.C.A. 6-21-201 et seq.

20 U.S.C. 4071 Equal Access Act

Board of Education of the Westside Community Schools vs Mergens, 496 U.S. 226 (1990)

PRIVACY OF STUDENT'S RECORDS/DIRECTORY INFORMATION

Except when a court order regarding a student has been presented to the district to the contrary, all students' educational records are available for inspection and copying by the parents of his/her student who is under the age of eighteen (18). At the age of eighteen (18), the right to inspect and copy a student's records transfers to the student. A student's parent or the student, if over the age of 18, requesting to review the student's education records will be allowed to do so within no more than forty five (45) days of the request. The district forwards education records, including disciplinary records, to schools that have requested them and in which the student seeks or intends to enroll, or is already enrolled so long as the disclosure is for purposes related to the student's enrollment or transfer.

The district shall receive written permission before releasing education records to any agency or individual not authorized by law to receive and/or view the education records without prior parental permission. The District shall maintain a record of requests by such agencies or individuals for access to, and each disclosure of, personally identifiable information ("PII") from the education records of each student. Disclosure of education records is authorized by law to school officials with legitimate educational interests. A personal record kept by a school staff member is not considered an education if it meets the following tests.

- it is in the sole possession of the individual who made it;
- it is used only as a personal memory aid; and
- information contained in it has never been revealed or made available to any other person, except the maker's temporary substitute.

For purposes of this policy a school official is a person employed by the school as an administrator, supervisor, instructor, or support staff member (including health or medical staff and law enforcement unit personnel); a person serving on the school board; a person or company with whom the school has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks.

For this policy a school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility, contracted duty, or duty of elected office.

In addition to releasing PII to school officials without permission, the District may disclose PII from the education records of students in foster care placement to the student's caseworker or to the caseworker's representative without

getting prior consent of the parent (or the student if the student is over 18). For the District to release the student's PII without getting permission: the student must be in foster care; the individual to whom the PII will be released must have legal access to the student's case plan; and the Arkansas Department of Human Services, or a sub-agency of the Department, must be legally responsible for the care and protection of the student.

The District discloses PII from an education record to appropriate parties, including parents, in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individual's. The superintendent or designee shall determine who will have access to and the responsibility for disclosing information in emergency situations.

When deciding whether to release PII in a health or safety emergency, the District may take into account the totality of the circumstances pertaining to a threat to the health and safety of the student or individuals. If the District determines that there is an articulable and significant threat to the person whose knowledge of the information is necessary to protect the health and safety of the student or other individuals.

For purposes of this policy, the Bradford School District does not distinguish between a custodial and noncustodial parent, or a non-parent such as a person acting in loco parentis or a foster parent with respect to gaining access to a student's records. Unless a court order restricting such access has been present to the district to the contrary, the fact of a person's status as parent or guardian, alone, enables that parent or guardian to review and copy his child's records.

If there exists a court order which directs that a parent not have access to a student or his records, the parent, guardian, person acting in loco parentis, or an agent of the Department of Human Services must present a file-marked copy of such order to the building principal and the Superintendent. The school will make good-faith efforts to act in accordance with such court order, but the failure to do so does not impose legal liability upon the school. The actual responsibility for enforcement of such court orders rests with the parents or guardians, their attorneys and the court which issued the order.

A parent or guardian does not have the right to remove any material from a student's records, but such parent or guardian may challenge the accuracy of a record. The right to challenge the accuracy of a record does not include the right to dispute a grade, disciplinary rulings, disability placements, or other such determinations, which must be done only through the appropriate teacher and/or administrator, the decision of whom is final. A challenge to the accuracy of material contained in a student file must be initiated with the building principal, with an appeal available to the Superintendent or his designee. Any appeal above that level will be to an independent hearing officer and must be consistent with the purposes of the federal Family Educational Rights and Privacy Act.

Unless the parent or guardian of a student (or student, if above the age of eighteen (18)) objects, directory information about a student may be made available to the public. If you do not want your student eighteen years of age or younger to be noted in a Bradford School District directory as defined in this policy, you must notify the school in writing within ten days from the beginning of the school year. ("Directory information" includes a student's name, address, telephone number, classes in which he/she is enrolled, his/her placement on the honor roll (or the receipt of other types of honors), as well as his/her participation in school clubs and extracurricular activities, among others. If the student participates in inherently public activities (for example, basketball, football, or the interscholastic activities), the publication of such information will be beyond the control of the District. "Directory information" also includes a student identification (ID) number, user ID, or other unique personal identifier used by a student for purposes of accessing or communicating in electronic systems and a student ID number or other unique identifier that is displayed on a student's ID badge, provided the ID cannot be used to gain access to education records except when in conjunction with one or more factors that authenticated the user's identity, such as a person identification number (PIN), password or other known or possessed only by the authorized user.

A student's name and photograph will only be displayed on the district or school web page(s) after receiving the written permission from the student's parent or student if over the age of 18.

The form for objecting to making directory information available is located in the back of the student handbook and must be completed and signed by the parent or age-eligible student and filed with the building principal's office no later than (10) days after the beginning of each school year or the date the student is enrolled for school. Failure to file an objection by that time is considered a specific grant of permission. The district is required to continue to honor any signed-opt out form for any student no longer in attendance at the district.

The right to opt out for disclosure of directory information under Family Educational Rights and Privacy Act (FERPA) does not prevent the District from disclosing or requiring a student to disclose the student's name, identifier, or institutional email address in a class in which the student is enrolled.

Parents and students over the age of 18 who believe the district has failed to comply with the requirements for the lawful release of and student records may file a complaint with the U.S. Department of Education at

Student Privacy Policy Office
U.S. Department of Education
400 Maryland Avenue, SW
Washington, DC 20202

The District shall ensure that all contracts that disclose or make available student personally identifiable information to vendors, including school service contract providers, school service on-demand providers, and other third parties, including without limitation subcontractors of contract providers, include express provisions that safeguard the privacy and security of student personally identifiable information that meet the requirements under A.C.A. § 6-18-2601 et seq. The District shall maintain a list of the school service contract providers that the District contracts with for school services that include or make available student personally identifiable information. The list shall be updated at least once at the beginning of each semester and provided to parents upon request.

Cross References: COMMUNICABLE DISEASES AND PARASITES

DISTRICT WEB SITE

WEB SITE PRIVACY POLICY

Legal References: A.C.A. §6-18-2601 et seq.

A.C.A. §8-29-113(b)(6)

28 U.S.C. §1232g

20 U.S.C. 7908

34 CFR §99.3 99.7, 99.31, 99.21, 99.22, 99.30, 99.31, 99.32, 99.33-37, 99.63, 99.64

A.C.A. 9-29-113(b)(6)

PERMISSION TO DISPLAY PHOTO of STUDENT on WEB SITE

PRIVACY OF STUDENT'S SOCIAL SECURITY NUMBER

Bradford School will not use, display, or print a student's Social Security number or any part of the number of any report, identification card, identification badge, or any document that will be made available or released to the public, to a student, or a student's parent or guardian without the express written consent of the student's parent, if the student is a minor, or the student, if the student is eighteen (18) years of age; or make a student's Social Security number available by reading the magnetic strip or other encoded information on the student's identification card.

STUDENT MEDIA AND THE DISTRIBUTION OF LITERATURE

The superintendent and the student media advisors shall jointly develop administrative regulations for the implementation of this policy. The regulations shall include definitions of terms and the times, places, and manners of the disseminations of student media, which shall include timelines for the review of materials.

Definitions

"School-sponsored media" means all student media that are:

Supported financially by the school;
Supported by the use of school facilities; or
Produced in conjunction with a class.

“Student journalist” means a student who gathers, writes, edits, photographs, records, video tapes, or prepares information for dissemination in a student media.

“Student Media” means any means of communication that are:

Prepared, substantially written, published, or broadcasted by a student;

Distributed or generally made available, either free of charge or for a fee, to members of the student body;
and

Prepared under the direction of a student media advisor.

“Student Media” does not include media that is intended for distribution or transmission solely in the classroom in which it is produced.

“Student media advisor” means an individual is employed , appointed, or designated by the District to supervise or provide instruction with respect to student media.

Student Media:

While the District recognizes a student’s right of expression under the First Amendment of the Constitution of the United States, school-sponsored media does not provide an open public forum for public expression. Student media, as well as the content of student expression in school-sponsored activities, shall be subject to the editorial review of the District’s administration whose actions shall be reasonably related to legitimate pedagogical concerns and adhere to the following limitations:

1. Advertising may be accepted for media that does not condone or promote products that are inappropriate for the age and maturity of the audience or that endorses such things as tobacco, alcohol, or drugs. 2. Media may be regulated to prohibit communications determined by the appropriate teacher, student media advisor, and/or administrator, to be ungrammatical; poorly written; inadequately researched; biased or prejudiced; vulgar or profane; or unsuitable for immature audiences.

3. Media may be regulated to prohibit the dissemination of material that may reasonably be perceived to advocate drug or alcohol use; irresponsible sex; or conduct that is otherwise inconsistent with the shared values of a civilized social order; or to associate the school with any position other than neutrality on matters of political controversy.

4. Prohibited media includes those that:

- a. Are obscene as to minors;
- b. Are libelous or slanderous, including material containing defamatory falsehoods about public figures or governmental officials, and made with knowledge of their falsity or a reckless disregard of the truth; c. Constitute an unwarranted invasion of privacy as defined by state law;
- d. Suggest or urge the commission of unlawful acts on the school premises;
- e. Suggest or urge the violation of lawful school regulations;
- f. Attacks ethnic, religious, or racial groups; or
- g. Harass, threaten, or intimidate a student.

Student Media on School Web Pages:

Student media displayed on school web pages shall follow the same guidelines as listed above and shall also:

1. Not contain any non-educational advertisements.
2. Adhere to restrictions regarding used of Directory Information as prescribed in Policy 4.13 including not using a student’s photograph when associated with the student’s name unless written permission has been received from the student’s parent or student if over the age of eighteen (18);
3. State that the views expressed are not necessarily those of the School Board or the employees of the district.

Student Distribution of Non-school Literature, Publications, and Materials:

A student or group of students who distribute ten (10) or few copies of the same nonschool-sponsored literature, publications, or materials shall do so in a time, place, and manner that does not cause a substantial disruption of the orderly education environment. A student or group of students wishing to distribute more than ten (10) copies of nonschool-sponsored materials shall have school authorities review their nonschool materials at least three (3) days in advance of their desired time of dissemination. School authorities* shall review non-school-sponsored materials prior to their distribution and will bar from distribution those nonschool-sponsored materials that are obscene, libelous, pervasively indecent, or advertise unlawful products or services. Material may also be barred from distribution if there is evidence that reasonably supports a forecast that a substantial disruption of the orderly operation of the school or educational environment will likely result from the distribution. Such evidence shall be based on more than unsubstantiated speculation as to what “might” happen or “could result” from the material’s distribution. Material that is merely offensive, unpopular, or that stimulates controversy shall not be barred from distribution. Concerns related to any denial of distribution by the principal shall be heard by the superintendent, whose decision shall be final.

The school principal or designee shall establish reasonable regulations governing the time, place, and manner of student distribution of nonschool-sponsored materials.

The regulations shall:

1. Be narrowly drawn to promote orderly administration of school activities by preventing disruption and may not be designed to stifle expression;
2. Be uniformly applied to all forms of nonschool-sponsored materials;
3. Allow no interference with classes or school activities;
4. Specify times, places, and manner where distribution may and may not occur;
5. Not inhibit a person’s right to accept or reject any literature distributed in accordance with the regulations.
6. Students shall be responsible for the removal of excess literature that is left at the distribution point for more than 10 days.

Legal References: A.C.A 6-18-514

A.C.A. A4 6-18-1202, 1203, & 1204

Tinker v. Des Moines ISD, 393 U.S. 503 (1969)

Bethel School District No. 403 v. Fraser 478 U.S. 675 (1986)

Hazelwood School District v. Kuhlmeier, 484 U.S. 260 (1988)

CONTACT WITH STUDENTS WHILE AT SCHOOL**Contact By Parents**

Parents wishing to visit their children during the school day shall register first with the office.

Contact By Non-Custodial Parents

If there is any question concerning the legal custody of the student, the custodial parent shall present documentation to the principal or the principal’s designee establishing the parent’s custody of the student or legal right of visitation. It shall be the responsibility of the custodial parent to make any court ordered “no contact” or other visitation restrictions regarding the non-custodial parent known to the principal by presenting a copy of a file-marked court order. Without such a court order on file, the school will release the child to either his/her parents. Non-custodial parents who file with the principal a date-stamped copy of current court orders granting unsupervised visitation may eat lunch, volunteer in their child’s classroom, or otherwise have contact with their child during school hours and the prior approval of the school’s principal. Such contact is subject to limitations outlined in other policies that may apply.

Arkansas law provides that, In order to avoid continuing child custody controversies from involving school personnel and to avoid disruptions to the educational atmosphere in the District's schools, the transfer of a child between his/her custodial parent and non-custodial parent, when both parents are present, shall not take place on the school's property on normal school days during normal hours of school operation. *The custodial or non-custodial parent may send to/drop off the student at school to be sent to/picked up by the other parent on predetermined days in accordance with any court order provided by the custodial parent or by a signed agreement between both the custodial and non-custodial parents that was witnessed by the student's building principal. *Unless a valid no-contact order has been filed with the student's principal or the principal's designee, district employees shall not become involved in disputes concerning whether or not that parent was supposed to pick up the student on any day.

Contact By Law Enforcement, Social Services, or By Court Order

State Law requires that Department of Human Services employees, local law enforcement, or agents of the Crimes Against Children Division of the Division of Arkansas State Police, may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviews deem it necessary, they may exercise a "72 hour hold" with first obtaining a court order. Except as provided below, other questioning of students by non-school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen (18) years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency due to a court order, the principal or the principal's designee shall make a good faith effort to contact the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, legal guardian, person having lawful control of the student, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement office, an investigator of the Crimes Against Children Division of the Division of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of the social services with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis notice that the student has been taken into custody by law enforcement personnel or a social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number.

Contact by Professional Licensure Standards Board Investigators

Investigators from the Professional Licensure Standards Board may meet with students during the school day to carry out the investigation of an ethics complaint.

Legal References: A.C.A. 6-18-513

A.C.A. 9-13-104

A.C.A. 12-18-609

A.C.A. 12-18-609,610,613

A.C.A. 12-18-1001,1005

STUDENT VISITORS

Student visitors in the classroom can be disruptive to the educational process. Student visitation is strongly

discouraged. Any visitation to the classroom shall be allowed only with the permission of the school principal.

PROHIBITED CONDUCT

Students and staff require a safe and orderly learning environment that is conducive to high student achievement. Certain student behaviors are unacceptable in such an environment and are hereby prohibited by the Board. Prohibited behaviors include, but shall not be limited to the following.

1. Disrespect for school employees and failing to comply with their reasonable directions or otherwise demonstrating insubordination;
2. Disruptive behavior that interferes with orderly school operations;
3. Willfully and intentionally assaulting or threatening to assault or physically abusing any student or school employee;
4. Possession of any weapon that can reasonably be considered capable of causing bodily harm to another individual;
5. Possession or use of tobacco in any form on any property owned or leased by any public school;
6. Willfully or intentionally damaging, destroying, or stealing school property;
7. Possession of any paging device, beeper, or similar electronic communication devices, on the school campus during normal school hours unless specifically exempted by the administration for health or other compelling reasons;
8. Possession, selling, distributing, or being under the influence of an alcoholic beverage, any illegal drug, or the inappropriate use or sharing of prescription or over the counter drugs, or other intoxicants, or anything represented to be a drug;
9. Sharing, diverting, transferring, applying to others (such as needles or lancets), in any way misusing medication or any medical supplies in their possession;
10. Inappropriate public displays of affection;
11. Cheating, copying, or claiming another person's work to be his/her own;
12. Gambling;
13. Inappropriate student dress;
14. Use of vulgar, profane, or obscene language or gestures;
15. Truancy;
16. Excessive tardiness;
17. Engaging in behavior designed to taunt, degrade, or ridicule another person on the basis of race, ethnicity, national origin, sex, sexual orientation, gender identity, or disability;
18. Hazing, or aiding in the hazing of another student;
19. Gangs or gang-related activities, including belonging to secret societies of any kind, are forbidden on school property. Gang insignias, clothing, "throwing signs" or other gestures associated with gangs are prohibited;
20. Sexual harassment;
21. Use of cell phone or electronic devices that violate policy;
 - 1st offense-** Student warning and parent must pick up the cell phone
 - 2nd offense-** One day of in-school suspension and the parent or legal guardian must pick up the cell phone
 - 3rd offense-** Three days of in-school suspension and the parent or legal guardian must pick up the cell phone
 - 4th offense-** Five days of in-school suspension and the parent or legal guardian must pick up the cell phone
 - 5th offense -** Out of school suspension and the parent or legal guardian must pick up the cell phone
22. Bullying;
23. Possess, view, distribute or electronically transmit sexually explicit or vulgar images or representations, whether electronically, on data storage device, or in hard copy form; and

24. Operating a vehicle on school grounds while using a wireless communication device; and
25. Theft of another individual's personal property.

The Board directs each school in the District to develop implementation regulations for prohibited student conduct consistent with applicable Board policy, State and Federal laws, and judicial decisions.

See STUDENT DISCIPLINE for possible consequences.

Legal References: A.C.A. § 6-18-502

A.C.A. § 6-18-707

A.C.A. § 6-15-1005

A.C.A. § 6-21-609

A.C.A. § 6-18-222

A.C.A. § 6-5-201

A.C.A. § 6-18-514

A.C.A. § 6-17-113

A.C.A. § 27-51-1602

A.C.A. § 27-51-1603

A.C.A. § 27-51-1609

DESE RULES Governing Student Discipline and School Safety

Food or Drink On-Campus Policy

NO energy drinks and supplements, including but not limited to energy shots, energy pills, and performance-enhancing supplements are strictly prohibited. Examples include: Red Bull, Monster, Celsius, Rock Star, NOS, etc.

POSSESSION AND USE OF CELL PHONE AND OTHER ELECTRONIC DEVICES

Students are responsible for conducting themselves in a manner that respects the rights of others. Possession and use of any electronic device, whether district or student owned, that interferes with a positive, orderly classroom environment does not respect the right of others and is expressly forbidden.

To protect the security of statewide assessments, no electronic device as defined in this policy shall be accessible by a student at any time during assessment administration unless specifically permitted by a student's individualized education plan (IEP) or individual health plan: this means that when a student is taking an AESAA assessment, the student shall not have his/her electronic device in his/her possession. Any student violating this provision shall be subject to this policy's disciplinary provisions. The prohibition in this policy does not extend to the electronic device the District provides the student for the student's use during assessment administration to the extent the student is using the District provided device to complete the assessment.

As used in this policy, "electronic devices" means anything that can be used to transmit or capture images, sound, or data.

Misuse of electronic devices include, but is not limited to:

- (1) Using electronic devices during class time in any manner other than specifically permitted by the classroom instructor;
- (2) Permitting any audible sound to come from the device when not being used for #1 reason above;
- (3) Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, or wrongfully obtaining test copies or scores;
- (4) Using the device to record audio or video or to take photographs in areas where a general expectation of personal privacy exists, including but not limited to locker rooms and bathrooms;
- (5) Creating, sending, sharing, viewing, or possessing an indecent visual depiction of oneself or another

person.

Use of an electronic device is permitted to the extent it is approved in a student's IEP or it is needed in an emergency that threatens the safety of students, staff, or other individuals.

Before and after normal school hours, possession of electronic devices is permitted on the school campus. The use of such devices at school sponsored functions outside the regular school day is permitted to the extent and within the limitations allowed by the event or activity the student is attending.

A parent shall obtain approval from the student's building principal before operating a student-tracking safety device at school or at a school-sponsored event if the device has recording or listen-in capability. The District requires the device's recording and listen-in technology to be disabled while the device is on the campus or at the school-sponsored event because of student privacy concerns. The District prohibits unauthorized audio or visual recordings or transmission of audio or images of other students. The student's parent shall agree in writing to the requirement for the device's recording and listening-in technology to be disabled and that the District may prohibit future use of the device on campus or at a school-sponsored activity if it is determined that the device's recording or listening-in capabilities were used in violation of this policy before the student safety tracking device may be on campus or at a school-sponsored event.

The student and/or the student's parents or guardians expressly assume any risk associated with students owning or possessing electronic devices. Student's misusing electronic devices shall have them confiscated. Confiscated devices may be picked up at the school's administration office by the student's parents or guardians. Students have no right of privacy as to the content contained on any electronic devices that have been confiscated. A search of a confiscated device shall meet the reasonable individualized suspicion requirements of Policy 4.32 – SEARCH, SEIZURE, AND INTERROGATIONS.

Students who use a school issued cell phone and/or computers for non-school purposes, except as permitted by the district's Internet/computer use policy, shall be subject to discipline, up to and including suspension or expulsion. Students are forbidden from using school issued cell phones while driving any vehicle at any time. Violations may result in disciplinary actions up to and including expulsion.

Students who repeatedly have cell phones or electronic devices confiscated shall be subject to disciplinary actions.

No student shall use any wireless communication device for the purposes of browsing the internet; composing or reading emails and text messages; or making or answering phone calls while driving a motor vehicle that is in motion and on school property. Violation may result in disciplinary action up to and including suspension.

Legal Reference: A.C.A. 6-15-2907

A.C.A. 6-18-515

DESE Test Administration Manual

A.C.A. 27-51-1602

A.C.A. 27-51-1603

A.C.A. 27-51-1609

DESE Rules Governing Student Discipline and School Safety

BULLYING

Definitions

“Attribute” means an actual or perceived personal characteristic including without limitation race, color, religion, ancestry, national origin, socioeconomic status, academic status, disability, gender, gender identity, physical appearance, health condition, or sexual orientation;

“Bullying” means the intentional harassment, intimidation, humiliation, ridicule, defamation, or threat or incitement of violence by a student against another student or public school employee by a written, verbal, electronic, or physical act that may address an attribute of the other student, public school employee, or person with whom the other student or public school employee is associated and that causes or creates actual or reasonably foreseeable:

- Physical harm to a public school employee or student or damage to the public school employee's or student's property;
- Substantial interference with a student's education or with a public school employee's role in education; ● A hostile educational environment for one (1) or more students or public school employees due to the severity, persistence, or pervasiveness of the act; or
- Substantial disruption of the orderly operation of the school or educational environment;

Examples of "Bullying" include, but are not limited to, a pattern of behavior involving one or more of the following:

1. Cyberbullying;
2. Sarcastic comments "compliments" about another student's personal appearance or actual or perceived attributes,
3. Pointed questions intended to embarrass or humiliate,
4. Mocking, taunting or belittling,
5. Non-verbal threats and/or intimidation such as “fronting” or “chesting” a person, 6. Demeaning humor relating to a student's actual or perceived attributes,
7. Blackmail, extortion, demands for protection money or other involuntary donations or loans, 8. Blocking access to school property or facilities,
9. Deliberate physical contact or injury to person or property,
10. Stealing or hiding books or belongings,
11. Threats of harm to student(s), possessions, or others,
12. Sexual harassment, as governed by policy 4.27, is also a form of bullying, and/or 13. Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether the student self-identifies as homosexual or transgender (Examples: “Slut”, “You are so gay.”, “Fag”, “Queer”).

"Cyberbullying" means any form of communication by electronic act that is sent with the purpose to:

- o Harass, intimidate, humiliate, ridicule, defame, or threaten a student, school employee, or person with whom the other student or school employee is associated; or
- o Incite violence towards a student, school employee, or person with whom the other student or school employee is associated.

Cyberbullying of School Employees includes, but is not limited to:

- a. Building a fake profile or website of the employee;
- b. Posting or encouraging others to post on the Internet private, personal, or sexual information pertaining to a school employee;

- c. Posting an original or edited image of the school employee on the Internet;
- d. Accessing, altering, or erasing any computer network, computer data program, or computer software, including breaking into a password-protected account or stealing or otherwise accessing passwords of a school employee;
- e. Making repeated, continuing, or sustained electronic communications, including electronic mail or transmission, to a school employee;
- f. Making, or causing to be made, and disseminating an unauthorized copy of data pertaining to a school employee in any form, including without limitation the printed or electronic form of computer data, computer programs, or computer software residing in, communicated by, or produced by a computer or computer network;
- g. Signing up a school employee for a pornographic Internet site; or
- h. Without authorization of the school employee, signing up a school employee for electronic mailing lists or to receive junk electronic messages and instant messages.

Cyberbullying is prohibited whether or not the cyberbullying originated on school property or with school equipment, if the cyberbullying results in the substantial disruption of the orderly operation of the school or educational environment or is directed specifically at students or school personnel and maliciously intended for the purpose of disrupting school and has a high likelihood of succeeding in that purpose.

“Harassment” means a pattern of unwelcome verbal or physical conduct relating to another person's constitutionally or statutorily protected status that causes, or reasonably should be expected to cause, substantial interference with the other's performance in the school environment; and

“Substantial disruption” means without limitation that any one or more of the following occur as a result of the bullying:

- Necessary cessation of instruction or educational activities;
- Inability of students or educational staff to focus on learning or function as an educational unit because of a hostile environment;
- Severe or repetitive disciplinary measures are needed in the classroom or during educational activities; or ● Exhibition of other behaviors by students or educational staff that substantially interfere with the learning environment.

Respect for the dignity of others is a cornerstone of civil society. Bullying creates an atmosphere of fear and intimidation, robs a person of his/her dignity, detracts from the safe environment necessary to promote student learning, and will not be tolerated by the Board of Directors. Students who bully another person shall be held accountable for their actions whether they occur on school equipment or property; off school property at a school sponsored or approved function, activity, or event; going to or from school or a school activity in a school vehicle or school bus; or at designated school bus stops.

Students are encouraged to report behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, to their teacher or the building principal. The report may be made anonymously. Teachers and other school employees who have witnessed, or are reliably informed that, a student has been a victim of behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, shall report the incident(s) to the building principal, or designee, as soon as possible. Parents or legal guardians may submit written reports of incidents they feel constitute bullying, or if allowed to continue would constitute bullying, to the building principal, or designee.

The person or persons reporting behavior they consider to be bullying shall not be subject to retaliation or reprisal in any form.

A building principal, or designee, who receives a credible report or complaint of bullying shall:

1. As soon as reasonably practicable, but by no later than the end of the school day following the receipt of the credible report of bullying:

- a. Report to a parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student that their student is the victim in a credible report of bullying; and
- b. Prepare a written report of the alleged incident of bullying;
2. Promptly investigate the credible report or complaint of bullying, which shall be completed by no later than the fifth (5th) school day following the completion of the written report.
3. Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student who was the alleged victim in a credible report of bullying whether the investigation found the credible report or complaint of bullying to be true and the availability of counseling and other intervention services.
4. Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of the student, or person acting in loco parentis of the student who is alleged to have been the perpetrator of the incident of bullying:
 - a. That a credible report or complaint of bullying against their student exists;
 - b. Whether the investigation found the credible report or complaint of bullying to be true; c. Whether action was taken against their student upon the conclusion of the investigation of the alleged incident of bullying; and
 - d. Information regarding the reporting of another alleged incident of bullying, including potential consequences of continued incidents of bullying;
5. Make a written record of the investigation, which shall include:
 - a. A detailed description of the alleged incident of bullying, including without limitation a detailed summary of the statements from all material witnesses to the alleged incident of bullying; b. Any action taken as a result of the investigation; and
6. Discuss, as appropriate, the availability of counseling and other intervention services with students involved in the incident of bullying.

Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion. In determining the appropriate disciplinary action, consideration may be given to other violations of the student handbook which may have simultaneously occurred.¹In addition to any disciplinary actions, the District shall take appropriate steps to remedy the effects resulting from bullying.

Notice of what constitutes bullying, the District's prohibition against bullying, and the consequences for students who bully shall be conspicuously posted in every classroom, cafeteria, restroom, gymnasium, auditorium, and school bus.² Parents, legal guardians, person having lawful control of a student, persons standing in loco parentis, students, school volunteers, and employees shall be given copies of the notice annually.³

The superintendent shall make a report annually to the Board of Directors on student discipline data, which shall include, without limitation, the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

Copies of this policy shall be available upon request.

Legal References: A.C.A. 5-71-217

A.C.A. 6-18-514

DESE Rules Governing Student Discipline and School Safety

STUDENTS WHO ARE FOSTER CHILDREN

The District will afford the same services and education opportunities to foster children that are afforded other children and youth. The District shall work with the Department of Human Services ("DHS"), the Division of Elementary and Secondary Education (DESE), and individuals involved with each foster child to ensure that the foster child is able to maintain his/her continuity of education services to the fullest extent that is practical and reasonable.

The Superintendent or his/her designee shall appoint an appropriate staff person to be the local educational liaison for foster children and youth whose responsibilities shall include ensuring the timely school enrollment of each foster child and assisting foster children who transfer between schools by expediting the transfer between schools by expediting the transfer of relevant educational records.

The District, working with other individuals and agencies shall, unless the presiding court rules otherwise or DHS grants a request to transfer under Foster Child School Choice, ensure that the foster child remains in his/her school of origin, even if a change in the foster child's placement results in a residency that is outside the district. In such a situation, the District will work with DHS to arrange for transportation to and from school for the foster child to the extent it is reasonable and practical.

Upon notification to the District's foster care liaison by a foster child's caseworker that a foster child's school enrollment is being changed to one of the District's schools, the school receiving the child must immediately enroll him/her. Immediate enrollment is required even if a child lack the required clothing, academic or medical records, or proof of residency.

A foster child's grades shall not be lowered due absence from school that is caused by a change in the child's school enrollment, the child's attendance at dependency-neglect court proceedings, or other court-ordered counseling or treatment.

Any course work completed by the foster child prior to school enrollment change shall be accepted as academic credit so long as the child has satisfactorily completed the appropriate academic placement assessment.

If a foster child was enrolled in a District's school immediately prior to completing his/her graduation requirements while detained in a juvenile detention facility or while committed to the Division of Youth Services of DHS, the District shall issue the child a diploma.

Foster Child School Choice

If DHS approves a request from a foster parent, or the foster child if the foster child is eighteen (18) years of age, to transfer to another school in the District or into the district as being in the best interest of the foster child, the District shall allow the foster child to transfer to another school in the District or into the District if the foster parent, or the foster child if the foster child is eighteen (18) years of age, submits a request to transfer on a form approved by DESE that is postmarked by no later than May 1 of the year the student seeks to begin the fall semester at another school in the District or in the District.

By July 1 of the school year in which the student seeks to transfer under this section, the superintendent shall notify the foster parent, or the foster child if the foster child is eighteen (18) years of age, in writing whether the application has been accepted or rejected. If the application is accepted, the superintendent shall state in the notification letter a reasonable deadline for the foster child to enroll in the new school or the District and that failure to enroll by the date shall void the school choice acceptance. If the application is rejected, the superintendent shall state in the notification letter the reason for the rejection and that the foster parent, or the foster child if the foster child is eighteen (18) years of age, may submit a written appeal of the rejection to the State board within ten (10) days of receiving the notification letter.

The District shall only reject a Foster Child School Choice application if:

1. The public school or District has reached the maximum student-to-teacher ratio allowed under federal law, state law, the standards for accreditation, or other applicable State rule or Federal regulation; or 2. Approving the transfer would conflict with a provision of an enforceable desegregation court order or a public school district's court-approved desegregation plan regarding the effects of past racial segregation in student assignment.

A foster child whose application is rejected by the District may submit a written request within ten (10) days

following the receipt of the rejection letter from the superintendent to the State Board of Education for the State Board to reconsider the transfer.

A Foster Child School Choice transfer shall remain in effect until the foster child:

- Graduates from high school; or
- Transfers to another school or school district under:
 - o The Foster Child School Choice Act;
 - o Opportunity Public School Choice Act of 2004;
 - o The Public School Choice Act of 2015; or
 - o Any other law that allows a transfer.

The District shall accept credits toward graduation that were awarded by another public school district.

When a foster child transfers from the foster child's school of origin to another school in the District or into the District, the foster child or the foster parent is responsible for the foster child's transportation to and from the school the foster child transferred to. The District and the foster parent, or the foster child if the foster child is eighteen (18) years of age, may enter into a written agreement for the District to provide the transportation to and from the school the foster child transferred to.

Legal Reference: A.C.A. 6-18-233
A.C.A. 9-28-113

PLACEMENT OF MULTIPLE BIRTH SIBLINGS

The parent, guardian or other person having charge or custody of multiple birth siblings in grades pre-K through 6 may request that the multiple birth siblings are placed in either the same or separate classrooms. The request shall be in writing not later than the 14th calendar day prior to the first day of classes at the beginning of the academic year. The school shall honor the request unless it would require the school to add an additional class to the sibling's grade level. If one parent of multiple birth siblings requests a placement that differs from that of the other parent of the same multiple birth siblings, the school shall determine the appropriate placement of the siblings.

The school may change the classroom placement of one or more of the multiple birth siblings if:

- There have been a minimum of 30 instructional days since the start of the year; and
- After consulting with each classroom teacher in which the siblings were placed, the school determines the parent's classroom placement request is:
 - Detrimental to the educational achievement of one or more of the siblings;
 - Disruptive to the siblings' assigned classroom learning environment; and
 - Disruptive to the school's educational or disciplinary environment.

If a parent believes the school has not followed the requirements of this policy the parent may appeal the multiple birth siblings' classroom placement to the Superintendent. The Superintendent's decision regarding the appeal shall be final.

Legal Reference: A.C.A. 6-18-106

HOMELESS STUDENTS

The Bradford School District will afford the same services and educational opportunities to homeless children as are afforded to non-homeless children. The Superintendent or his/her designee shall appoint an appropriate staff person to be the local educational agency (LEA) liaison for homeless children and youth whose responsibilities shall include, but are not limited to:

- Receive appropriate time and training in order to carry out the duties required by law and this policy;
 - coordinate and collaborate with the State Coordinator, community, and school personnel

- responsible for education and related services to homeless children and youths;
- Ensure that school personnel receive professional development and other support regarding their duties and responsibilities for homeless youths;
- Ensure that unaccompanied homeless youths:
 - Are enrolled in school;
 - Have opportunities to meet the same challenging State academic standards as other children and youths; and
 - Are informed of their status as independent students under the Higher Education Act of 1965 and that they may obtain assistance from the LEA liaison to receive verification of such status for purposes of the Free Application for Federal Student Aid;
- Ensure that public notice of the educational rights of the homeless children and youths is disseminated in locations frequented by parents or guardians of such youth, and unaccompanied homeless youths, including schools, shelters, public libraries, and soup kitchens, in a manner and form that is easily understandable.

To the extent possible, the LEA liaison and the building principal shall work together to ensure no homeless child or youth is harmed due to conflicts with District policies solely because of the homeless child or youth's living situation; this is especially true for District policies governing fees, fines, and absences.

Notwithstanding Policy 4.1, homeless students living in the district are entitled to enroll in the district's school that non-homeless students who live in the same attendance area are eligible to attend. If there is a question concerning the enrollment of a homeless child due to a conflict with Policy 4.1 or 4.2, the child shall be immediately admitted to the school in which enrollment is sought pending resolution of the dispute, including all appeals. It is the responsibility of the District's LEA liaison for homeless children and youth to carry out the dispute resolution process.

For the purposes of this policy "school of origin" means:

- The school that a child or youth attended when permanently housed or the school in which the child or youth was last enrolled, including a preschool; and
- The designated receiving school at the next grade level for all feeder schools when the child completes the final grade provided by the school of origin.

- The District shall do one of the following according to what is in the best interests of a homeless child: 1. Continue the child's or youth's education in the school of origin for the duration of homelessness; • In any case in which a family becomes homeless between academic years or during an academic year; and
- For the remainder of the academic year, if the child or youth becomes permanently housed during an academic year; or
2. Enroll the child or youth in any public school that nonhomeless students who live in the attendance area in which the child or youth is actually living are eligible to attend.

In determining the best of the child or youth, the District shall:

- Presume that keeping the child or youth in the school of origin is in the child's or youth's best interest, except when doing so is contrary to the request of the child's or youth's parent or guardian, or (in the case of an unaccompanied youth) the youth;
- Consider student-centered factors related to the child's or youth's best interest, including factors related to the impact of mobility on achievement, education, health, and safety of homeless children and youth, giving priority to the request of the child's or youth's parent or guardian or (in the case of an unaccompanied youth) the youth.

If the District determines that it is not the child's or youth's best interest to attend the school of origin or the school requested by the parent or guardian, or (in the case of an unaccompanied youth) the youth, the District shall provide the child's or youth's parent or guardian or the unaccompanied youth with a written explanation of the reasons for its

determination, in a manner and form understandable to such parent, guardian, or unaccompanied youth, including information regarding the right to appeal. For an unaccompanied youth, the District shall ensure that the LEA liaison assists in placement or enrollment decisions, gives priority to the views of such unaccompanied youth, and provides notice to such youth of the right to appeal.

The homeless child or youth must be immediately enrolled in the selected school regardless of whether application or enrollment deadlines were missed during the period of homelessness.

The District shall be responsible for providing transportation for a homeless child, at the request of the parent or guardian (or in the case of an unaccompanied youth, the LEA Liaison), to and from the child's school of origin.

A homeless student shall be immediately eligible to participate in interscholastic activities at the school in which the student is enrolled.

For the purposes of this policy, students shall be considered homeless if they lack a fixed, regular, and adequate nighttime residence and

A. Are:

- Sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason;
- Living in motels, hotels, trailer parks, or camping grounds due to lack of alternative adequate accommodations
- Living in emergency or transitional shelters;
- Abandoned in hospitals; or

B. Have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings;

C. Are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings; and includes

D. Are migratory children who are living in circumstances described in clauses (a) through (c).

In accordance with Federal law, information on a homeless child or youth's living situation is part of the student's education record and shall not be considered, or added, to the list of directory information in Policy 4.13.

Legal References: A.C.A. § 6-18-114

A.C.A. § 9-25-106

42 U.S.C. § 11431 et seq

42 U.S.C § 11431 (2)

42U.S.C § 11432 (g)(1)(H)(I)

42U.S.C § 11432 (g)(1)(J)(i),(ii),(iii)(I),(iii)(II)

42U.S.C § 11432 (g)(3)(A),(A)(i)(I),(A)(i)(II),(A)(ii)

42U.S.C § 11432 (g)(3)(B)(i),(ii)(iii)

42U.S.C § 11432 (g)(3)(C)(i),(ii)(iii)

42U.S.C § 11432 (g)(3)(E)(i),(ii)(iii)

42U.S.C § 11432 (g)(3)(G)

42U.S.C § 11432 (g)(4)(A),(B),(C),(D),(E)

42U.S.C § 11434a

CONDUCT TO AND FROM SCHOOL

The District's Student Code of conduct applies to students while traveling to and from school or to and from a school activity to the same extent as if the students were on school grounds. Appropriate disciplinary actions may be taken against commuting students who violate the District's Student Code of Conduct.

The preceding paragraph also applies to student conduct while on school buses. Students shall be instructed on safe riding practices. The driver of a school bus shall not operate the school bus until every passenger is seated. In addition to other disciplinary measures provided for violations of the District's Student Code of Conduct, the student's transportation privileges may be suspended or terminated for violations of the Student Code of Conduct related to bus behavior.

The transportation to and from school of students who have lost their bus transportation privileges is the responsibility of the student's parent or guardian.

See STUDENT DISCIPLINE for possible consequences.

Legal References: A.C.A. § 5-60-122

A.C.A. § 6-19-119 (b)

Ark. Division of Academic Facilities and Transportation Rules Governing Maintenance and Operations of Ark. Public School Buses and Physical Examinations of School Bus Drivers 4.0

DISRUPTION OF SCHOOL

No student shall by the use of violence, force, noise, coercion, threat, intimidation, fear, passive resistance, or any other conduct, intentionally cause the disruption of any lawful mission, process, or function of the school, or engage in any such conduct for the purpose of causing disruption or obstruction of any lawful mission, process, or function. Nor shall any student encourage any other student to engage in such activities.

Disorderly activities by any student or group of students that adversely affect the school's orderly educational environment shall not be tolerated at any time on school grounds. Teachers may remove from class and send to the principal's or principal designee's office a student whose behavior is so unruly, disruptive, or abusive that it seriously interferes with the teacher's ability to teach the students, the class, or with the ability of the student's classmates to learn. Students who refuse to leave the classroom voluntarily will be escorted from the classroom by the school administration.

See STUDENT DISCIPLINE for possible consequences.

Legal References: A.C.A. 6-18-511

DESE Rules Governing Student Discipline and School Safety

STUDENT ASSAULT OR BATTERY

A student shall not threaten, physically abuse, or attempt to physically abuse, or behave in such a way as to be perceived to threaten bodily harm to any other person (student, school employee, or school visitor). Any gestures, vulgar, abusive or insulting language, taunting, threatening, harassing, or intimidating remarks by a student toward another person that threatens their well-being is strictly forbidden. This includes, but is not limited to, fighting, racial, ethnic, religious, or sexual slurs.

Furthermore, it is unlawful, during regular school hours, and in a place where a public school employee is required to be in the course of his or her duties, for any person to address a public school employee using language which, in its common acceptance, is calculated to:

- a. Cause a breach of the peace;

- b. Materially and substantially interfere with the operation of the school; or
- c. Arouse the person to whom it is addressed to anger, to the extent likely to cause imminent retaliation.

Students guilty of such an offense may be subject to legal proceedings in addition to any student disciplinary measures.

See Student Discipline for possible consequences.

Legal References: A.C.A. A4 6-17-106 (a)

DESE Rules Governing Student Discipline and School Safety

WEAPONS AND DANGEROUS INSTRUMENTS

Definitions

“Firearm” means any device designed, made, or adapted to expel a projectile by the action of an explosive or any device readily convertible to that use.

“Possession” means having a weapon on the student’s body or in an area under the student’s control.

“Weapon” means any:

- Firearm;
- Knife;
- Razor;
- Ice pick;
- Dirk;
- Box cutter;
- Nunchucks;
- Pepper spray, mace, or other noxious spray;
- Explosive;
- Taser or other instrument that uses electrical current to cause neuromuscular incapacitation; or ●

Any other instrument or substance capable of causing bodily harm.

No student, except for Military personnel (such as ROTC cadets) acting in their course of their official duties or as otherwise expressly permitted by this policy, shall possess a weapon, display what appears to be a weapon, or threaten to use a weapon before or after school while:

- o In a school building;
- o On or about school property;
- o At any school sponsored activity or event;
- o On route to or from school or any school sponsored activity; or
- o Off the school grounds at any school bus stop.

If a student discovers prior to any questioning or search by any school personnel that he/she has accidentally brought a weapon, other than a firearm, to school on his/her person, in a book bag/purse, or in his/her vehicle on school grounds, and the student informs the principal or staff person to school immediately, the student will not be considered to be in possession of a weapon, unless it is a firearm. The weapon will be confiscated and held in the office until such time as the student’s parents or legal guardian shall pick up the weapon from the school office. Repeated offenses are unacceptable and shall be grounds for disciplinary action against the student as otherwise

provided in this policy.

Except as permitted in this policy, students found to be in possession on the school campus of a firearm or other weapon shall be expelled for a period of one (1) year. The Superintendent shall have the discretion to modify such expulsion recommendation for a student on a case-by-case basis. Parents or legal guardians of students expelled under this policy shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property. Parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to readmitting the student. Parents or legal guardians of a student enrolling from another school after the expiration of an expulsion period for a weapons policy violation shall also be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property. The parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The mandatory expulsion requirement for possession of a firearm does not apply to a firearm brought to school for the purpose of participating in activities approved and authorized by the district that include the use of firearms. Such activities may include ROTC programs, hunting safety or military education, or before or after school hunting and rifle clubs. Firearms brought to school for such purpose shall be brought to the school employee designated to receive such firearms. The designated employee shall store the firearms in a secure location until they are removed for use in the approved activity.

The district shall report any student who brings a firearm to school to the criminal justice system or juvenile delinquency system by notifying local law enforcement.

See STUDENT DISCIPLINE for possible consequences.

Cross Reference: Policy 4.31 - EXPULSION

Legal References: A.C.A. § 5-4-201

A.C.A. § 5-4-401

A.C.A. § 5-27-210

A.C.A. § 5-73-119(b)(e)(8)(9)(10)

A.C.A. § 5-73-133

A.C.A. § 6-18-502

A.C.A. § 6-18-507

A.C. A. § 6-21-608

DESE Rules Governing Student Discipline and School Safety

20 USCS § 7961

TOBACCO, ELECTRONIC NICOTINE DELIVERY SYSTEMS, AND RELATED PRODUCTS

Smoking or use of tobacco or products containing tobacco in any form (including but not limited to, cigarettes, cigars, chewing tobacco, and snuff) in or on any real property owned or leased by a District school, including school buses owned or released by the District, is prohibited. Students who violate this policy may be subject to legal proceedings in addition to student disciplinary measures.

With the exception of recognized tobacco cessation products, this policy's prohibition includes any tobacco or nicotine delivery system or product. Specifically, the prohibition includes any product that is manufactured, distributed, marketed, or sold as e-cigarettes, e-cigars, e-pips, or under any other name or description. See STUDENT DISCIPLINE for possible consequences.

Legal References: A.C.A. 6-21-609

DRUGS AND ALCOHOL

An orderly and safe school environment that is conducive to promoting student achievement requires a student population free from the deleterious effects of alcohol and drugs. Their use is illegal, disruptive to the educational environment, and diminishes the capacity of students to learn and function properly in our schools.

Therefore, no student in the Bradford School District shall possess, attempt to possess, consume, use, distribute, sell, buy, attempt to sell, attempt to buy, give to any person, or be under the influence of any substance as defined in this policy. This policy applies to any student who; is on or about property; is in attendance at school or any school sponsored activity; has left the school campus for any reason and returns to the campus; is en route to or from school or any school sponsored activity.

Prohibited substances shall include, but are not limited to: alcohol, or any alcoholic beverage; inhalants or ingestible matter that alter a student's ability to act, think, or respond; LSD, or any other hallucinogen; marijuana, cocaine, heroin, or any other narcotic drug; PCP; amphetamines; steroid; "designer drugs"; look-alike drugs; or any controlled substance.

The sale, distribution, or attempted sale or distribution of over-the-counter (OTC) medications, dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, or prescription drugs is prohibited. The possession or use of OTC medications, dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, or prescription drugs is prohibited except as permitted under Policy 4. 35 – STUDENT MEDICATIONS.

Cross Reference: 4.35 – STUDENT MEDICATIONS

Legal reference: A.C.A. 6-18-502

DESE Rules Governing Student Discipline and School Safety

See STUDENT DISCIPLINE for possible consequences.

STUDENT DRESS AND GROOMING

The Bradford Board of Education recognizes that dress can be a matter of personal taste and preference. At the same time, the District has a responsibility to promote an environment conducive to student learning. This requires limitations to student dress and grooming that could be disruptive to the educational process because they are immodest, disruptive, unsanitary, unsafe, could cause property damage, or are offensive to common standards of decency.

Students are prohibited from wearing, while on the school grounds during the school day and at school sponsored events clothing that exposes underwear, buttocks, or the breast of a female. This prohibition does not apply, however, to a costume or a uniform worn by a student while participating in a school sponsored activity or event.

The Superintendent shall establish student dress codes for the District's schools to be included in the student handbook, and are consistent with the above criteria.

A student shall not be disciplined or discriminated against based upon the student's natural, protective, or cultural hairstyle. A student's natural, protective, or cultural hairstyle includes without limitation afros, dreadlocks, twists, locs, braids, cornrow braids, Bantu knots, curls, and hair styled to protect hair texture or for cultural significance.

Student Dress and Grooming

- K-4 Grades: Students in grades K-4 may wear shorts. All summer clothing for grades K-4 shall be no more than 4 inches from the top of the knee (shorts, skirts, culottes, jams) which include both boys and girls. No tank tops, mesh tops, spandex, or midribs neither shall vulgar or suggestive messages be allowed. No caps or hats with vulgar or suggestive messages or that disrupt a safe, orderly learning environment will be allowed at school.
- 5th-12th Grades: NO slit skirts; tank tops; string tops; mesh tops; spandex; midribs showing or visible undergarments; holes or slits in clothing from the bottom of the knee up; no sagging of pants and no shirts with sleeves cut off unless an undershirt is worn under it; mini-skirts shorter than 4 inches from the top of the knee; pajamas; clothing displaying slogans or advertising beer, tobacco products or other controlled substance, obscene language or bandannas; also, no caps or hats with vulgar or suggestive messages or that

disrupt a safe, orderly learning environment will be allowed at school.

Shorts may be worn if they meet the following criteria:

1. Shorts must be no more than 4 inches from the top of the knee.
2. If cutoffs are worn they must be hemmed.
3. The administration will have the authority to stop the wearing of shorts at any given point if the student body, collectively or as individuals, do not follow the dress code policy for shorts on a daily basis.

Violations of the dress code policy will be handled in the following manner:

1st offense The student will be sent home to change or school officials will provide them something to wear.

2nd offense In-School-Suspension

3rd offense Suspension from school

Legal References: A.C.A. 6-10-137

A.C.A. 6-18-502(c)(1)

A.C.A. 6-18-503(c)

GANGS AND GANG ACTIVITY

The Board is committed to ensuring a safe school environment conducive to promoting a learning environment where students and staff can excel. An orderly environment cannot exist where unlawful acts occur causing fear, intimidation, or physical harm to students or school staff. Gangs and their activities create such an atmosphere and shall not be allowed on school grounds or at school functions.

The following actions are prohibited by students on school property or at school functions: 1. Wearing or possessing any clothing, bandannas, jewelry, symbol, or other sign associated with membership in, or representing of, any gang;

2. Engaging in any verbal or nonverbal act such as throwing signs, gestures, or handshakes representative of membership in any gang;

3. Recruiting, soliciting, or encouraging any person through duress or intimidation to become or remain a member of any gang; and/or

4. Extorting payment from any individual in return for protection from harm from any gang. Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion. Students arrested for gang related activities occurring off school grounds shall be subject to the same disciplinary

actions as if they had occurred on school grounds.

See STUDENT DISCIPLINE for possible consequences.

Legal References: A.C.A. § 5-74-201 et seq.

A.C.A. § 6-15-1005(b)(2)

STUDENT SEXUAL HARASSMENT

The Bradford School District is committed to providing an academic environment that treats all students with respect and dignity. Student achievement is best attained in an atmosphere of equal educational opportunity that is free of discrimination. Sexual harassment is a form of discrimination that undermines the integrity of the educational environment and will not be tolerated.

The District believes the best policy to create an educational environment free from sexual harassment is prevention; therefore, the District shall provide informational materials and training to students, parents/legal guardians/other responsible adults, and employees on sexual harassment. The informational materials and training on sexual harassment shall be age appropriate and, when necessary, provided in a language other than English or in an accessible format. The informational materials and training shall include, but are not limited to:

- the nature of sexual harassment;
 - The District's written procedures governing the formal complaint grievance process;¹ •
- The process for submitting a formal complaint of sexual harassment;
- That the district does not tolerate sexual harassment;
 - That students can report inappropriate behavior of a sexual nature without fear of adverse consequences; •
- The supports that are available to individuals suffering sexual harassment; and
- The potential discipline for perpetrating sexual harassment.

Definitions

“Complainant” means an individual who is alleged to be the victim of conduct that could constitute sexual harassment.

“Education program or activity” includes locations, events, or circumstances where the District exercised substantial control over both the respondent and the context in which the sexual harassment occurs.

“Formal complaint” means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting an investigation of the allegation of sexual harassment.

“Respondent” means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

“Sexual harassment” means conduct on the basis of sex that satisfies one or more of the following:

1. A District employee:

- a. Conditions the provision of an aid, benefit, or service of the District on an individual's participation in sexual conduct;² or
- b. Uses the rejection of sexual conduct as the basis for academic decisions affecting that individual;²

2. The conduct is:

- a. Unwelcome; and
 - b. Determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the District's education program or activity; or c.
- Constitutes:
- d. Sexual assault;
 - e. Dating violence
 - f. Domestic violence; or
 - g. Stalking.

“Supportive measures” means individualized services that are offered to the complainant or made available to the respondent designed to restore or preserve equal access to the District's education program or activity without unreasonably burdening the other party. The supportive measures must be non-disciplinary and non-punitive in nature; offered before or after the filing of a formal complaint or where no formal complaint has been filed; and offered to either party as appropriate, as reasonably available, and without fee or charge. Examples of supportive measures include, but are not limited to: measures designed to protect the safety of all parties or the District's educational environment, or deter sexual harassment; counseling; extensions of deadlines or other course-related adjustments; modifications of work or class schedules; campus escort services; mutual restrictions on contact between the parties; changes in work or class locations; leaves of absence; and increased security and monitoring of certain areas of the campus.

Within the educational environment, sexual harassment is prohibited between any of the following: students; employees and students; and non-employees and students.

Actionable sexual harassment is generally established when an individual is exposed to a pattern of objectionable behaviors or when a single, serious act is committed. What is, or is not, sexual harassment will depend upon all of the surrounding circumstances and may occur regardless of the sex(es) of the individuals involved. Depending upon such circumstances, examples of sexual harassment include, but are not limited to:

- Making sexual propositions or pressuring for sexual activities;
- Unwelcome touching;
- Writing graffiti of a sexual nature;
- Displaying or distributing sexually explicit drawings, pictures, or written materials; ·
- Performing sexual gestures or touching oneself sexually in front of others; · Telling sexual or crude jokes;
- Spreading rumors related to a person's alleged sexual activities;
- Discussions of sexual experiences;
- Rating other students or employees as to sexual activity or performance;
- Circulating or showing e-mails or Web sites of a sexual nature;
- Intimidation by words, actions, insults, or name calling; and
- Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether or not the individual self-identifies as homosexual or transgender.

Students who believe they have been subjected to sexual harassment, or the parent/legal guardian/other responsible adult of a student who believes their student has been subjected to sexual harassment, are encouraged to bring their